

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

INGRID BERNHARDT, Appellant, v EDWARD SCHNEIDER, Respondent.

Submitted March 22, 2021; decided May 27, 2021

Reported below, 190 AD3d 919.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

CURACAO OIL N.V., Appellant, v TRAFIGURA PTE. LTD., Respondent.

Submitted March 1, 2021; decided May 27, 2021

Reported below, 189 AD3d 404.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DITECH FINANCIAL, LLC, Formerly Known as GREEN TREE SERVICING LLC, Appellant, v SANTHANA KUMAR NATARAJA NAIDU, Respondent, et al., Defendants.

Submitted March 29, 2021; decided May 27, 2021

Reported below, 175 AD3d 1387.

Motion to amend remittitur granted. Return of remittitur requested and when returned it will be amended to read as follows: Order reversed, with costs, and case remitted to the Appellate Division, Second Department, for consideration of issues raised but not determined on the appeal to that Court [see 37 NY3d 1 (2021)].

In the Matter of LACEY JO FERGUSON, Respondent, v NICHOLAS JOSEPH LECLAIR et al., Appellants. (Appeal No. 1.)

In the Matter of NICHOLAS JOSEPH LECLAIR, Appellant, v LACEY JO FERGUSON, Respondent, and EMILY ROSE WHIPPLE, Appellant. (Appeal No. 2.)

Decided May 27, 2021

Reported below, 191 AD3d 1380; 191 AD3d 1381.

Appeal, insofar as taken from that portion of the February 2021 Appellate Division order that affirmed that portion of the June 2019 Family Court order dismissing the petition to modify a visitation order, dismissed without costs, by the Court sua sponte, upon the ground that no appeal lies from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question; appeal otherwise dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the remaining portion of the order appealed from does not finally determine the proceedings within the meaning of the Constitution.

In the Matter of FREDERICK T. et al., and Another, Children Alleged to be Neglected. MARIA T., Appellant; SHELTERING ARMS CHILDREN AND FAMILY SERVICES, Respondent.

Submitted March 22, 2021; decided May 27, 2021

Reported below, 191 AD3d 489.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

FREEDOM MORTGAGE CORPORATION, Appellant, v HERSCHEL ENGEL, Respondent, et al., Defendants.

Submitted April 5, 2021; decided May 27, 2021

Reported below, 163 AD3d 631.

Motion for reargument denied [*see* 37 NY3d 1 (2021)]. Motion to amend remittitur granted. Return of remittitur requested and when returned it will be amended to read as follows: Order reversed, with costs, and case remitted to the Appellate Division, Second Department, for consideration of issues raised but not determined on the appeal to that Court.

JAMES W. GILLIAM II, Appellant, v DISCOVER BANK et al.,
Respondents.

Decided May 27, 2021

Reported below, 192 AD3d 1444.

Appeal dismissed without costs, by the Court of Appeals *sua sponte*, upon the ground that no substantial constitutional question is directly involved.

In the Matter of GRACE M. SUFFOLK COUNTY DEPARTMENT OF
SOCIAL SERVICES, Appellant; DENISE C., Respondent.

Submitted March 8, 2021; decided May 27, 2021

Reported below, 191 AD3d 681.

Motion for leave to appeal dismissed upon the ground that the issue presented has become moot.

In the Matter of DAVLIN LALAND, Appellant, v SHAVONNE
BOOKHART et al., Respondents.

Submitted January 25, 2021; decided May 27, 2021

Reported below, 183 AD3d 565.

Motion by Lawyers for Children, Inc., et al. for leave to appear *amici curiae* on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of LILY BB., Alleged to be an Abused and Neglected Child. ULSTER COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; STEPHEN BB., Appellant.

Submitted March 29, 2021; decided May 27, 2021

Reported below, 191 AD3d 1126.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of LOWER EAST SIDE ORGANIZED NEIGHBORS et al., Appellants, v NEW YORK CITY PLANNING COMMISSION et al., Respondents.

Submitted April 26, 2021; decided May 27, 2021

Reported below, 191 AD3d 548.

Motion by Natural Resources Defense Council for leave to appear amicus curiae on the motion for leave to appeal herein granted and the proposed brief is accepted as filed.

KEVIN MARTIN, Appellant, et al., Plaintiff, v TOTAL REALTY ASSOCIATE, INC., Respondent.

Submitted May 10, 2021; decided May 27, 2021

Reported below, 2021 NY Slip Op 63348(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

KEVIN MARTIN, Appellant, et al., Plaintiff, v TOTAL REALTY ASSOCIATE, INC., Respondent.

Submitted March 8, 2021; decided May 27, 2021

Reported below, 2021 NY Slip Op 61247(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that it does not lie. Motion for leave to appeal dismissed upon the ground that it does not lie. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

MJK BUILDING CORP. et al., Appellants, v FAYLAND REALTY, INC., et al., Respondents, et al., Defendants.

Submitted February 8, 2021; decided May 27, 2021

Reported below, 181 AD3d 860.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DAVID G. PELTAN, Respondent, v KAREN M. CISLER, Appellant.

Submitted March 29, 2021; decided May 27, 2021

On the Court's own motion, appeal transferred, without costs, to the Appellate Division, Fourth Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, § 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]) Motion for leave to appeal etc. dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARL JOHNSON, Appellant.

Submitted May 24, 2021; decided May 27, 2021

Reported below, 191 AD3d 801.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE LLACA, Appellant. NORMA ROSELLO, Nonparty.

Submitted February 1, 2021; decided May 27, 2021

Reported below, 189 AD3d 1072.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RUTH M. LORA, Appellant.

Submitted May 10, 2021; decided May 27, 2021

Reported below, 192 AD3d 1488.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EUGENE MENDOZA, Appellant.

Submitted May 10, 2021; decided May 27, 2021

Reported below, 177 AD3d 773.

Motion for assignment of counsel granted and Paul Skip Laisure, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIE PACE, Appellant.

Submitted May 24, 2021; decided May 27, 2021

Reported below, 192 AD3d 1274.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

CHARLES ROCHESTER, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted February 22, 2021; decided May 27, 2021

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* CPLR 5602 [a]). Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

EVELYN RODRIGUEZ, Respondent, v JOSEPH KALATA et al., Appellants.

Submitted February 22, 2021; decided May 27, 2021

Reported below, 189 AD3d 489.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution (*see Burke v Crosson*, 85 NY2d 10, 18 n 5 [1995]).

S&T BANK, Respondent, v TOP CAPITAL OF NEW YORK BROCKPORT, LLC, Formerly Known as PERSISTENCE PATH, LLC, et al., Defendants, and SWAN TILE AND MARBLE, INC., et al., Appellants.

Submitted January 11, 2021; decided May 27, 2021

Reported below, 188 AD3d 1634.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

S&T BANK, Respondent, v TOP CAPITAL OF NEW YORK BROCKPORT, LLC, Formerly Known as PERSISTENCE PATH, LLC, et al., Defendants, and SWAN TILE AND MARBLE, INC., et al., Appellants.

Submitted February 1, 2021; decided May 27, 2021

Reported below, 188 AD3d 1634.

Motion by Empire State Chapter of the Associated Builders and Contractors, Inc. for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

S&T BANK, Respondent, v TOP CAPITAL OF NEW YORK BROCKPORT, LLC, Formerly Known as PERSISTENCY PATH, LLC, et al., Defendants, and SWAN TILE AND MARBLE, INC., et al., Appellants.

Submitted February 1, 2021; decided May 27, 2021

Reported below, 188 AD3d 1634.

Motion by Northeastern Subcontractors Association, Inc. for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

S&T BANK, Respondent, v TOP CAPITAL OF NEW YORK BROCKPORT, LLC, Formerly Known as PERSISTENCE PATH, LLC, et al., Defendants, and SWAN TILE AND MARBLE, INC., et al., Appellants.

Submitted March 1, 2021; decided May 27, 2021

Reported below, 188 AD3d 1634.

Motion by Associated General Contractors of New York State, LLC for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

STARR INDEMNITY & LIABILITY COMPANY, Appellant, v MONTE CARLO, LLC, et al., Respondents, et al., Defendant.

Submitted February 16, 2021; decided May 27, 2021

Reported below, 190 AD3d 441.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of STATE OF NEW YORK, Respondent, v JOSEPH R., an Inmate in the Custody of New York State Department of Corrections and Community Supervision, Appellant, for Civil Management under Article 10 of the Mental Hygiene Law.

Submitted March 8, 2021; decided May 27, 2021

Reported below, 189 AD3d 2126.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

U.S. BANK NATIONAL ASSOCIATION, Successor Trustee to BANK OF AMERICA, NATIONAL ASSOCIATION, as Successor by Merger to LaSALLE BANK NA, as Trustee for WASHINGTON MUTUAL MORTGAGE PASS-THROUGH CERTIFICATES, WAMU SERIES 2007-OA4 TRUST, Respondent, v SHERRY KIM et al., Defendants, and ROBERT L. GORDONS LLC, Appellant.

Decided May 27, 2021

Reported below, 192 AD3d 612.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies from the Appellate Division order pursuant to stipulation for judgment absolute under CPLR 5601 (c) where the Appellate Division did not order a new trial or hearing within the meaning of CPLR 5601 (c).

JOSEPH VENDETTI, Appellant, v STEPHEN ZYWIAK et al., Respondents, et al., Defendants. (Appeal No. 1.)

Decided May 27, 2021

Reported below, 191 AD3d 1268.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

[169 NE3d 1227, 146 NYS3d 864]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NATHANIEL MABRY, Appellant.

Decided May 27, 2021

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered June 24, 2020. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (John B. Latella, J.), which had convicted defendant, upon a plea of guilty, of burglary in the second degree (two counts), criminal possession of stolen property in the fourth degree (two counts), criminal possession of stolen property in the fifth degree (three counts), and possession of burglar's tools. The appeal to the Appellate Division brought up for review the denial (Steven W. Paynter, J.), after a hearing (Arthur J. Cooperman, J.H.O.), of those branches of defendant's omnibus motion which were to suppress physical evidence, identification testimony, and his statement to law enforcement officials.

People v Mabry, 184 AD3d 867, reversed.

HEADNOTE**Crimes — Unlawful Search and Seizure — Warrantless Search Incident to Arrest**

The People failed to establish that the warrantless search of defendant's backpack was a valid search incident to arrest, as the record did not contain evidence supporting a determination that the backpack was in defendant's immediate control or grabbable area. There was a lack of testimony in the record indicating where the bag was in relation to defendant immediately prior to the search.

APPEARANCES OF COUNSEL

Janet E. Sabel, The Legal Aid Society, New York City (Denise Fabiano of counsel), for appellant.

Melinda Katz, District Attorney, Kew Gardens (Hannah X. Scotti of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be reversed and the case remitted to Supreme Court for further proceedings in accordance with this memorandum.

The People failed to establish that the warrantless search of defendant's backpack was a valid search incident to arrest (*see People v Jimenez*, 22 NY3d 717, 721-722 [2014]). The record does not contain evidence supporting a determination that the backpack was in defendant's "immediate control or 'grabbable area'" (*People v Gokey*, 60 NY2d 309, 312 [1983]; *see People v Wheeler*, 2 NY3d 370, 373 [2004]). There is a lack of testimony in the record indicating where the bag was in relation to defendant immediately prior to the search. Because Supreme Court denied defendant's suppression motion without reaching the People's alternative argument raised in opposition, we remit the matter to Supreme Court (*see People v Garcia*, 20 NY3d 317, 324 [2012]; *People v LaFontaine*, 92 NY2d 470, 476 [1998]; *People v Turriago*, 90 NY2d 77, 87 [1997]).

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia and Wilson concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and case remitted to Supreme Court, Queens County, for further proceedings in accordance with the memorandum herein.

DARRYL BRIGGS, Appellant, v STATE OF NEW YORK DEPARTMENT OF CORRECTIONS AND COMMUNITY SUPERVISION et al., Respondents.

Submitted March 22, 2021; decided June 3, 2021

Reported below, 2021 NY Slip Op 61434(U).

Motion for leave to appeal dismissed upon the ground that it does not lie. Motion for poor person relief dismissed as academic.

WILLIAM BURA et al., Appellants, v WESTFAIR CORP. et al., Respondents.

Submitted March 1, 2021; decided June 3, 2021

Reported below, 190 AD3d 679.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JASON CLARKE, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Submitted March 15, 2021; decided June 3, 2021

Reported below, 190 AD3d 1245.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of DCH AUTO et al., Appellants, v TOWN OF MAMARONECK et al., Respondents.

Submitted March 29, 2021; decided June 3, 2021

Reported below, 178 AD3d 823.

Motion by Wakefern Food Corporation for leave to appear amicus curiae on the motion for leave to appeal herein granted and the memorandum of law is accepted as filed.

In the Matter of DCH AUTO et al., Appellants, v TOWN OF MAMARONECK et al., Respondents.

Submitted April 5, 2021; decided June 3, 2021

Reported below, 178 AD3d 823.

Motion by CVS Albany LLC et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of DCH AUTO et al., Appellants, v TOWN OF MAMARONECK et al., Respondents.

Submitted April 5, 2021; decided June 3, 2021

Reported below, 178 AD3d 823.

Motion by Stop & Shop Supermarket Company, LLC for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of DCH AUTO et al., Appellants, v TOWN OF MAMARONECK et al., Respondents.

Submitted March 29, 2021; decided June 3, 2021

Reported below, 178 AD3d 823.

Motion by International Council of Shopping Centers, Inc. for leave to appear amicus curiae on the motion for leave to appeal herein granted and the memorandum of law is accepted as filed.

In the Matter of the Claim of TIMOTHY DOSTER, Respondent. FUNDAMENTAL LABOR STRATEGIES, Appellant; COMMISSIONER OF LABOR, Respondent.

Submitted March 15, 2021; decided June 3, 2021

Reported below, 2021 NY Slip Op 61429(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

FENG LI, Appellant, v DIANA PENG et al., Respondents.

Submitted March 22, 2021; decided June 3, 2021

Reported below, 190 AD3d 950.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of KEVIN GRIFFIN, Appellant, v CHARLES CARNES, Respondent.

Submitted March 1, 2021; decided June 3, 2021

Reported below, 2020 NY Slip Op 75931(U).

Motion for leave to appeal insofar as it seeks leave to appeal from the portions of the Appellate Division order denying the motion for leave to appeal to that Court and the applications for poor person relief and assignment of counsel, dismissed upon the ground that such portions of the order sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

KIRCHHOFF-CONSIGLI CONSTRUCTION MANAGEMENT, LLC, Appellant, v DHARMAKAYA, INC., Respondent.

Submitted March 1, 2021; decided June 3, 2021

Reported below, 186 AD3d 585.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Submitted April 5, 2021; decided June 3, 2021

Reported below, 2020 NY Slip Op 65625(U); 2020 NY Slip Op 65624(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Chief Judge DiFIORE taking no part.

SETH MITCHELL, Appellant, v CIGNA CORPORATION et al., Respondents.

Submitted April 5, 2021; decided June 3, 2021

Reported below, 2020 NY Slip Op 74569(U).

Motion for reargument denied [*see* 36 NY3d 1045 (2020)].

In the Matter of JULIAN MURRAY, Appellant, v NEW YORK STATE DEPARTMENT OF CORRECTIONS AND COMMUNITY SUPERVISION, Respondent.

Submitted March 8, 2021; decided June 3, 2021

Reported below, 190 AD3d 1066.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the Supreme Court judgment, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portion of the Appellate Division order does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of the Claim of GHEORGHE PETRE, Appellant, v ALLIED DEVICES CORP. et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted March 8, 2021; decided June 3, 2021

Reported below, 191 AD3d 1086.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of EUGENIA PINKARD, Appellant, v NEW YORK
CITY DEPARTMENT OF EDUCATION et al., Respondents.

Submitted March 15, 2021; decided June 3, 2021

Reported below, 190 AD3d 532.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for ancillary relief dismissed upon the ground that the Court of Appealst does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

REIN L.P., Appellant, v STATE OF NEW YORK et al., Respondents.

Submitted March 1, 2021; decided June 3, 2021

Reported below, 2020 NY Slip Op 73342(U).

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; 2103 [b] [2]).

Judge RIVERA taking no part.

SCHLAM STONE & DOLAN LLP, Respondent, v ROBERT I. TOUSSIE,
Appellant, et al., Defendants.

Submitted March 8, 2021; decided June 3, 2021

Reported below, 188 AD3d 582; 2021 NY Slip Op 61934(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

In the Matter of the Estate of WANDA TARKA, Deceased. MELANIE TARKA Appellant.

Submitted February 22, 2021; decided June 3, 2021

Reported below, 2021 NY Slip Op 60044(U).

Motion for leave to appeal etc. dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of the Estate of MARK TARKA, Deceased. MELANIE TARKA, Appellant.

Submitted February 22, 2021; decided June 3, 2021

Reported below, 2021 NY Slip Op 60044(U).

Motion for leave to appeal etc. dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

WILLIAM WEINRAUCH, Appellant, v NEW YORK LIFE INSURANCE COMPANY, Respondent.

Submitted March 1, 2021; decided June 3, 2021

Reported below, 190 AD3d 511.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

SCOTT WHITE et al., Appellants, v MARK P. PLEXOUSAKIS et al., Respondents.

Submitted March 15, 2021; decided June 3, 2021

Reported below, 2020 NY Slip Op 73999(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[170 NE3d 439, 147 NYS3d 565]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GEORGE BROWN, Appellant.

Decided May 6, 2021

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 26, 2019. The Appellate Division affirmed a judg-

ment of the Supreme Court, Bronx County (Linda Poust Lopez, J. at plea; Cori H. Weston, J. at sentencing), which had convicted defendant, upon his plea of guilty, of attempted assault in the first degree.

People v Brown, 177 AD3d 575, affirmed.

HEADNOTE

Crimes — Appeal

In a criminal prosecution, an Appellate Division order affirming defendant's conviction, upon his plea of guilty, of attempted assault in the first degree was affirmed.

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (*Jody Ratner* of counsel), for appellant.

Darcel D. Clark, District Attorney, Bronx (*Kyle R. Silverstein* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

During the plea proceeding, defendant pleaded guilty and waived his right to appeal pursuant to a negotiated sentence that was subsequently imposed. His challenge to the validity of his appeal waiver was properly rejected. Under the circumstances, as the Appellate Division concluded, defendant's contention that his CPL 380.50 (1) right to an opportunity to make a personal statement at sentencing was violated is not reviewable because such a claim did not survive the valid appeal waiver. Although the statutory right is "deeply rooted" and "substantial," its value is largely personal to defendant (*see People v McClain*, 35 NY2d 483 [1974]). Defendant's claim does not fall among the narrow class of nonwaivable defects that undermine "the integrity of our criminal justice system . . . [or] implicate . . . a public policy consideration that transcends the individual concerns of a particular defendant to obtain appellate review" (*People v Muniz*, 91 NY2d 570, 574 [1998]; *see People v Allen*, 86 NY2d 599, 602-603 [1995]). Moreover, despite defendant's arguments to the contrary, a valid unrestricted waiver of appeal elicited during a plea proceeding can preclude appellate review of claims that have "not yet reached full maturation," including those arising during sentencing (*Muniz*, 91 NY2d at 575; *see People v Hidalgo*, 91 NY2d 733

[1998] [harsh and excessive sentence claim]; *People v Pacherville*, 25 NY3d 1021 [2015] [denial of youthful offender status]; *People v Callahan*, 80 NY2d 273 [1992] [procedural challenge to restitution sentence]), nor is this challenge to presentence procedures reviewable under the illegal sentence exception (see *Callahan*, 80 NY2d at 281).

WILSON, J. (dissenting). In the year 399 BCE, Socrates, whom Plato lauded as the wisest and most just of all persons, was convicted of impiety and moral corruption of the Athenian youth. According to custom, he spoke at length before sentence was pronounced. The right of a condemned defendant to speak at sentencing carried into the English common law, and into New York's common law and criminal procedure law. It stopped with George Brown.

Because this error implicates the fundamental fairness of our criminal justice system, I dissent.

I.

On March 17, 2017, Mr. Brown pleaded guilty to attempted assault in the first degree in exchange for a negotiated sentence of seven years in prison with five years' postrelease supervision and a permanent order of protection. He also agreed to waive his right to appeal. On May 1, Mr. Brown appeared for sentencing. The hearing was administered with swift, businesslike efficiency: the court, prosecutor, defense counsel and Mr. Brown all understood the agreement they had reached. After arraignment, the court clerk told Mr. Brown, on the record and in open court: "Before the Court pronounces the sentence, the People will be given an opportunity to make a statement, your lawyer will be given an opportunity to make a statement and you will also make a statement if you so wish."

Next, the People spoke, requesting that Mr. Brown be sentenced as promised. Mr. Brown's counsel noted his objection to the court's denial of Mr. Brown's motion to cut his hair and defer the mandatory surcharge. The court interjected, asking: "Did he already waive his right to appeal?" The People responded in the affirmative, and the clerk produced the signed waiver. The court glanced at it and asked the People if they wanted to say anything. "I already did," they responded. The court then explained the order of protection for the victim, asking Mr. Brown, "Do you understand that?" Mr. Brown spoke for the first time, answering yes but adding that he did not know

the victim. At the previous hearing, Mr. Brown had expressed concern that he could unknowingly violate the order of protection because the victim was a stranger. At the time, the court had reassured him that as long as any contact was unintentional, he would not violate the order. But now, the court simply asked, “Do you understand what I just told you?” Mr. Brown said he did.

The court continued, reminding Mr. Brown that he was forbidden from carrying a firearm and instructing him to sign the order of protection, which Mr. Brown did. Then, the court sentenced Mr. Brown to seven years in state prison, five years’ postrelease supervision, \$300 mandatory surcharge, \$25 crime victim’s fee and a DNA fee of \$50. Mr. Brown’s counsel objected to the DNA fee, which the court denied. Then, Mr. Brown asked: “Am I going to get a chance to talk? This whole thing is bull. I don’t understand this. It don’t matter to me. Let’s get this shit over with. Y’all, I love you all. I’ll see y’all when I see y’all. Fuck that.” Mr. Brown never was permitted to make a statement at sentencing.

The plurality concludes that Mr. Brown’s waiver of the right to appeal waived his right to speak at sentencing. Even if we assume that his appeal waiver was valid, I fail to understand how it could waive his right to speak at sentencing. The statutory violation on which Mr. Brown’s appeal is based occurred *after* he waived his right to appeal. We have never held that an appeal waiver will bar a defendant from challenging future errors. It is impossible to see how such a procedure could fall within our settled jurisprudence requiring that waiver be “knowing, voluntary and intelligent.” It is hard to see how it could comport with due process. At the time he entered into his plea agreement and waived his right to appeal, he had every reason to believe that part of the bargain included his right to address the court at sentencing. Additionally, the right of the defendant to an allocution is not only “a matter of fairness to the accused,” but also implicates “the reality of fairness in the process itself,” and thus should be among the narrow category of rights that survive the waiver of the right to appeal (*People v Seaberg*, 74 NY2d 1, 9 [1989]).

II.

At common law, the right of allocution dates back to the seventeenth century (*Green v United States*, 365 US 301, 304 [1961]). In early modern England, the penalty for almost all

felonies was death, and after sentence was pronounced the defendant was “placed in a state of attainder” and “regarded as dead in law” (Paul W. Barrett, *Allocution*, 9 Mo L Rev 115, 120 [1944] [emphasis omitted]). As a result, a defendant could not serve as a witness, maintain an action, prepare a will or dispose of property (*id.*). Attainder was not only punishment for the defendant, but also the defendant’s family: all property was forfeited to the crown and any children lost their right to inherit and any titles of nobility (*id.*). Given those harsh consequences, the allocution allowed the defendant to offer a defense or plead a recognized ground for reprieve (for example, pregnancy or insanity), the failure to offer the defendant the opportunity to speak was grounds for a reversal of the attainder (*id.* at 120-121).

The right of allocution is a long-standing one in New York, where courts adopted it directly from the common law. In the 1854 case *Safford v People*, the Saratoga General Term concluded that it was “undoubtedly” necessary that the court accord the defendant an opportunity “to say why judgment should not be pronounced against him” (1 Parker Crim Rep 474, 476 [1854]). Describing the common-law allocution requirement, the court reasoned that the “practice has its foundation in good sense and common justice” (*id.* at 477). We subsequently defined the allocution as a “substantial legal right” in *Messner v People*, stating that the “court has no more power to dispense with this rule or disregard it than it has any other legal rule, which the wisdom and experience of ages has found necessary for the protection of the innocent” (45 NY 1, 7 [1871]). The right was first codified as section 480 of the Code of Criminal Procedure in 1881¹ and is incorporated in the modern code in CPL 380.50. That provision governed Mr. Brown’s sentencing and the sentencing of all criminal defendants convicted of a crime by our courts: “The defendant also has the right to make a statement personally in his or her own behalf, and before pronouncing sentence the court must ask the defendant whether he or she wishes to make such a statement” (CPL 380.50 [1]).

With the advent of modern criminal procedure—particularly the right to counsel—denial of the right of allocution is no lon-

1. Former Code of Criminal Procedure § 480 provided that “[w]hen the defendant appears for judgment, he must be asked by the clerk whether he have any legal cause to show why judgment should not be pronounced against him.”

ger thought of as the basis for vacating a conviction, but the essential importance of the right is still widely recognized. “None of these modern innovations lessens the need for the defendant, personally, to have the opportunity to present to the court his plea in mitigation,” the US Supreme Court reasoned in *Green v United States* (365 US at 304). “The most persuasive counsel”—the Court continued—“may not be able to speak for a defendant as the defendant might, with halting eloquence, speak for himself” (*id.*). Similarly, in *People v McClain*, we stated “the right has long been regarded as substantial” (35 NY2d 483, 490 [1974]). Both US Supreme Court precedent and our own directs sentencing courts to “unambiguously address themselves to the defendant” and “leave no room for doubt that the defendant has been issued a personal invitation to speak prior to sentencing” (*Green*, 365 US at 305; *see also McClain*, 35 NY2d at 492 [“For the future it would be better, of course, for the sentencing court to make it unmistakably clear that the defendant and his attorney each has a right to address the court. This could be simply accomplished by advice to that effect, followed by direct invitations to speak addressed individually to the defendant and then to counsel”]).

Unlike early modern England, defendants in New York today do not face the death penalty upon conviction for a felony, nor are they placed in an indefinite state of attainder. But the statements they make in their allocution still have the potential to determine the length of their incarceration and the terms of their reentry. Even where there is a negotiated sentence as part of a plea, the Appellate Division may rely on the mitigating circumstances identified at sentencing, including the defendant’s remorse, in deciding whether to reduce the defendant’s sentence in the interest of justice (*see e.g. People v Wyrick*, 154 AD3d 1181, 1182 [3d Dept 2017]). The notes from the sentencing hearing are also among the materials weighed by the Board of Parole in determining whether incarcerated people are likely to live law-abiding lives (Executive Law § 259-i [2] [c] [A]; *Matter of Duffy v New York State Dept. of Corr. & Community Supervision*, 132 AD3d 1207 [3d Dept 2015]; *see also* Joshua I. Burger-Caplan, Note, *Time of Desperation: An Examination of Criminal Defendants’ Experiences of Allocuting at Sentencing*, 51 Colum JL & Soc Probs 39, 56 [2017] [describing parole board’s consideration of incarcerated person’s statements at sentencing]). The Board is explicitly permitted to consider whether the individual in question has

demonstrated remorse and insight into the crime (*Matter of Silmon v Travis*, 95 NY2d 470, 478 [2000]). As Mr. Brown argues, “an expression of remorse at a sentencing proceeding may be more influential than similar statements made before the Parole Board itself, because they evince an inmate’s consistent” admission of guilt.

The allocution also serves a second, broader institutional purpose. Our criminal justice system is designed to evaluate guilt and mete out appropriate punishment in accordance with the principles of justice. The procedural protections afforded to defendants are essential to ensure that they are treated fairly and are not deprived of their liberty unjustly. Ironically, they also have the effect of silencing defendants, reducing them to the objects rather than the subjects of prosecution by the State. As one commentator has noted, “in millions of criminal cases often involving hours of verbal negotiations and dozens of pages of transcripts, the typical defendant may say almost nothing to anyone but his or her own attorney” (Alexandra Natapoff, *Speechless: The Silencing of Criminal Defendants*, 80 NYU L Rev 1449, 1450 [2005]). Allocution provides the one, unfettered opportunity for a defendant, now convicted of a crime, to address the court and make a public statement. Had Mr. Brown been afforded his right to a statement, he could have said he was sorry, or was not sorry, or was justified or not, or explained his actions or motivations in a way that would have engendered our sympathy, our disgust, or something else. Instead, by terminating the proceeding while Mr. Brown was attempting to assert his right to make a statement at sentencing, the message the court system sends is that he is an object, and that what the legislature and common law both have promised does not matter.

The plurality’s holding trammels the emphatically expressed intent of the legislature, which mandated that the court “*must* ask the defendant whether he or she wishes to make . . . a statement” (CPL 380.50 [1] [emphasis added]). The language of that provision was modeled on rule 32 (a) (1) of the Federal Rules of Criminal Procedure rather than the former Code of Criminal Procedure § 480 (Peter Preiser, Practice Commentary, McKinney’s Cons Laws of NY, Book 11A, CPL 380.50 [1971 ed]; see also Staff Comment of Temp St Commn on Rev of Penal Law and Crim Code, 1967 Proposed NY CPL 195.50 at 258). After *Green v United States* but before the 1970 revisions to the Code, the Federal Rules were amended to make clear that

the court must directly ask defendants whether they desire to make a statement (*id.*). The CPL adopted the Federal Rule in this regard, issuing a compulsory directive to courts to address the defendant directly, not through counsel, to offer the defendant the chance to address the court (*id.*). Here, the sentencing court did not merely fail to comply with the Criminal Procedure Law, but when Mr. Brown himself attempted to assert his right to speak, the sentencing proceeding was terminated.

III.

There is a second reason why Mr. Brown's claim survived his waiver. As we have explained, an appeal waiver is the outcome of a "carefully orchestrated bargain" between the People and the defendant (*People v Thomas*, 34 NY3d 545, 558 [2019]). The promise that Mr. Brown would be afforded an opportunity to speak at sentencing was a part of that bargain. Neither the court nor the People believed that, through either his plea agreement or his appeal waiver, Mr. Brown had bargained away his right to speak at sentencing. Indeed, the clerk advised him that he had retained the right, and the People did not say anything to the contrary. We have previously held that a defendant did not knowingly and intelligently waive the right to appeal her sentence where it "had not yet been declared by the court" at the time of the plea colloquy, five months before sentencing (*People v Maracle*, 19 NY3d 925, 928 [2012]). Similarly, in *People v Johnson* we held that a defendant did not knowingly and intelligently waive his right to appeal where—although the terms and conditions of the plea agreement were unequivocal and the "defendant was not informed that the court intended to further reflect on the appropriateness of the promised disposition"—the court ultimately decided "not to abide by the original promise" (14 NY3d 483, 486-487 [2010]). Mr. Brown's position is far stronger: the record unequivocally demonstrates that Mr. Brown did not bargain away his right to allocute, and everyone understood that he had not done so.²

2. The cases cited by the plurality to support the proposition that a valid, unrestricted waiver can preclude appellate review of claims arising during sentencing do not involve error by the court, but rather discretionary determinations (see *People v Hidalgo*, 91 NY2d 733, 737 [1998] [reasoning that "defendant did not know her specific sentence at the time of the waiver, (but) she did acknowledge the sentencing options the trial court could impose in its discretion" and "agreed . . . to abide by the court's exercise of discre-

(n. cont'd)

IV.

In accordance with our precedent, Mr. Brown's sentence should be vacated and his case should be remanded for resentencing so that he can finally be given an opportunity to speak on his own behalf (see *People v Nesce*, 201 NY 111, 114 [1911] [holding that defendant denied the right to allocution was not entitled to a new trial, but reversing the judgment and remitting the case "to proceed upon the verdict according to the statute"]; see also *People v Craig*, 295 NY 116, 120 [1946]). The cost to the judicial system of granting him the right to allocute is the cost of transporting him to and from court. The cost to the system of turning its back on a statutory and common-law right is the loss of confidence in the system itself. In the words of one judge, the right to allocution "reaffirms human dignity in the face of severe punishment" (D. Brock Hornby, *Speaking in Sentences*, 14 Green Bag 2d 147, 154 [2011]; see also Joshua I. Burger-Caplan, Note, *Time of Desperation: An Examination of Criminal Defendants' Experiences of Allocuting at Sentencing*, 51 Colum J L & Soc Probs 39, 51-52 [2017] [quoting formerly incarcerated person's statement that "I think opening your mouth just shows them that you're a human being who does consider things . . . I think that will bring some humanity back to you. I think the judge and the people in the court who see hundreds of bodies a day need to be reminded that these are people and not, like, inventory coming through, you know? I think that that can be lost whenever you do something too much"])). When courts deprive defendants of a final opportunity to speak on their own behalf, they deny them even the minimal modicum of dignity that the allocution affords, and the possibility of presenting a narrative of their life that goes beyond their worst acts.

Instead of hearing what Mr. Brown wanted to say, we have only a record of the immense anger and disillusion he felt when the judicial system pulled the rug out from under him. Why should Mr. Brown, or anyone reading the court transcript or

tion in determining her (lawful) sentence"]; *People v Pacherille*, 25 NY3d 1021, 1023 [2015] [holding that appeal waiver foreclosed defendant's challenge to County Court's consideration of and denial of his request to be adjudicated a youthful offender because it was "a matter left to the sound discretion of the sentencing court"]; *People v Callahan*, 80 NY2d 273, 281 [1992] [concluding that defendant waived objections to "the adequacy of the procedures the court used to arrive at its (lawful) sentencing determination"])). The plurality's proposition—that an appellate waiver can waive future statutory violations by the court—is wholly unsupported.

this dissent, have confidence that the court system operates by its own rules? I do not fault the sentencing court, which may have simply been confused, distracted, overburdened or inattentive, but two appellate courts, with the luxury of time to read the transcript, the briefs and the statutes, have decided that the rules do not matter. I dissent because Mr. Brown had the right to speak his mind at sentencing, did not waive that right, and I, for one, would have liked him to enter prison thinking the courts treated him fairly.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

Chief Judge DiFiore and Judges Stein and Garcia concur; Judge Fahey concurs in result upon the ground that defendant's arguments are unpreserved; Judge Wilson dissents in an opinion, in which Judge Rivera concurs.

[170 NE3d 446, 147 NYS3d 571]

In the Matter of WEST 58TH STREET COALITION, INC., et al.,
Respondents-Appellants, v CITY OF NEW YORK et al.,
Appellants-Respondents, and NEW HAMPTON, LLC, et al.,
Appellants-Respondents.

Argued and submitted April 27, 2021; decided May 27, 2021

SUMMARY

CROSS APPEALS, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered August 13, 2020. The Appellate Division modified, on the law and the facts, a judgment (denominated decision, order, and judgment) of the Supreme Court, New York County (Alexander M. Tisch, J.; op 2019 NY Slip Op 31159[U]), entered in a proceeding pursuant to CPLR article 78, which had (1) denied the petition to annul a determination of respondents to open a shelter at 158 West 58th Street in Manhattan, and (2) dismissed the proceeding. The modification consisted of remitting the matter to Supreme Court to conduct "a hearing on whether the building's use is consistent with general safety and welfare standards." The Appellate Division affirmed the judgment as modified. The following question was certified by the Appellate Division: "Was the order of this Court, which modified a judgment of the

Supreme Court, New York County (Tisch, J.), entered on or about April 29, 2019, properly made?"

Matter of West 58th St. Coalition, Inc. v City of New York, 188 AD3d 1, modified.

HEADNOTE

Administrative Law — Judicial Review — Remittal by Appellate Division for Plenary Judicial Proceedings

In a CPLR article 78 proceeding challenging respondent municipality's plan to open a homeless shelter that Supreme Court dismissed upon concluding that respondent's determination that the planned use of the building as a specialized homeless shelter warranted its placement in the "R-2" classification group was rational, the Appellate Division erred in remitting to Supreme Court for a hearing on whether the building's use as a homeless shelter was "consistent with general safety and welfare standards." The scope of judicial review did not extend past the question of whether the challenged determinations were irrational, which is a question of law (*see* CPLR 7803 [3]). Upon concluding that an authorized agency has reviewed a matter applying the proper legal standard and that its determination has a rational basis, a court cannot second guess that determination by granting a hearing to find additional facts or consider evidence not before the agency when it made its determination. Accordingly, it was improper for the Appellate Division to remit for plenary judicial proceedings to address "general safety and welfare" issues, thereby contravening the applicable standard of judicial review in this context and inviting inconsistent enforcement of the New York City Building Code.

APPEARANCES OF COUNSEL

James E. Johnson, Corporation Counsel, New York City (*Barbara Graves-Poller, Richard Dearing, and Devin Slack* of counsel), for City of New York and others, appellants-respondents.

Law Offices of Nathan M. Ferst, New York City (*Nathan M. Ferst* of counsel), for New Hampton, LLC and others, appellants-respondents.

Rivkin Radler LLP, New York City (*Jeremy B. Honig, Erez Glambosky, Cheryl F. Korman, and Henry M. Mascia* of counsel), for West 58th Street Coalition, Inc. and others, respondents-appellants.

Proskauer Rose LLP, New York City (*Michael A. Cardozo, Matthew J. Morris, Brittany N. Benavidez, and Peter Fishkind* of counsel), for Coalition for the Homeless, Inc., amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified in accordance with this memorandum, with costs to respondents, as

so modified affirmed, and certified question answered in the negative.

In 2018, the City of New York published a notice of its intention to contract with a nonprofit services and housing provider to open a homeless shelter for approximately 150 employed or job-seeking men in an existing building located in Manhattan. The building, constructed in 1910, operated as a “single room occupancy” (SRO) tenement building and subsequently a hotel. After a public hearing on the City’s plan to open the shelter at the proposed location, the Department of Buildings (DOB) approved two applications permitting certain renovations to be made to the building for its use as a homeless shelter in “Group R-2” of the New York City Building Code’s (the Building Code) use and occupancy classification scheme. DOB subsequently issued a temporary certificate of occupancy (TCO) for certain floors of the building based on its classification in “Group R-2.”

Petitioners—a coalition of neighbors formed to oppose the opening of the shelter, the owner of an adjacent building, and individuals who live nearby, including some who share a wall with the proposed shelter—commenced this CPLR article 78 proceeding challenging the City’s plan to “open a large homeless shelter in an unsafe building located just steps from Central Park” in their “otherwise . . . thriving neighborhood.” They argued that the City’s decision to open the shelter was arbitrary and capricious because, among other reasons, the shelter was improperly classified as a “Group R-2” building (as opposed to “Group R-1”)—a classification that permitted continued use of the historic building without modification of the residential spaces to comply with the current Building Code.* Despite the building’s decades-long operation as an SRO and hotel, petitioners contended, in light of certain internal structural characteristics, that the building would become a “safety hazard” if operated as a homeless shelter.

Supreme Court denied the application and dismissed the petition, concluding, among other things, that the City’s determination that the planned use of the building as a specialized homeless shelter warranted its placement in the “R-2” clas-

* As the Appellate Division observed, buildings constructed before 2008 are generally exempt from the provisions of the current Building Code and are required instead to comply with a prior version of the Code unless there is a change in use or occupancy of the building or certain, enumerated alterations are made, which must be completed in accordance with the current Code (*see* Administrative Code of City of NY §§ 28-102.4, 28-102.4.2, 28-102.4.3).

sification group was rational, noting that the issuance of the partial TCO indicated that DOB determined the building was in compliance with applicable laws (2019 NY Slip Op 31159[U] [Sup Ct, NY County 2019]). Although the Appellate Division agreed that “respondents rationally determined that the subject building is a class A multiple dwelling in the ‘R-2’ occupancy group which represents a continuation of a preexisting use group classification and is grandfathered from compliance with the current New York City Building Code,” the Court modified the order by remitting to Supreme Court with the direction to conduct “a hearing on whether the building’s use is consistent with general safety and welfare standards” (188 AD3d 1, 3, 14 [1st Dept 2020]).

As both courts below concluded, the City’s classification of the building was rational. Under the Building Code, “Group R-2” includes buildings occupied for “permanent residence purposes,” defined as those occupied for 30 consecutive days or more—such as “[a]partment hotels (nontransient)” (NY City Building Code [Administrative Code of City of NY, tit 28, ch 7] § BC 310.1.2; Administrative Code of City of NY § 27-2004 [a] [8] [a]). Here, the building’s “R-2” classification was based on evidence that residents would occupy their dwelling units, on average, for at least 30 days given the nature of the services and programs that would be offered there. Accordingly, Supreme Court properly dismissed the petition.

The Appellate Division erred in remitting to Supreme Court for a hearing on whether the building’s use as a homeless shelter was “consistent with general safety and welfare standards.” In this CPLR article 78 proceeding, the scope of judicial review does not extend past the question of whether the challenged determinations were irrational, which is a question of law (*see* CPLR 7803 [3]; *Matter of Khan v New York State Dept. of Health*, 96 NY2d 879, 880 [2001]). Upon concluding that an authorized agency has reviewed a matter applying the proper legal standard and that its determination has a rational basis, a court cannot second guess that determination by granting a hearing to find additional facts or consider evidence not before the agency when it made its determination (*see Matter of Rizzo v New York State Div. of Hous. & Community Renewal*, 6 NY3d 104, 110 [2005]). Accordingly, it was improper for the Appellate Division to remit for plenary judicial proceedings to address “general safety and welfare” issues, thereby contravening the applicable standard of judicial review in this context and inviting inconsistent enforcement of the Building Code.

We need not address the remaining arguments raised by the parties.

Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA and WILSON concur.

Order modified in accordance with the memorandum herein, with costs to respondents, as so modified affirmed, and certified question answered in the negative.

APPEALS WITHDRAWN AND DISCONTINUED

(May 1, 2021 through May 31, 2021)

Center on Privacy & Tech., Matter of, v New York City Police Dept.	1st Dept: 181 AD3d 503	5/5/21
People v Lantigua (Gustavo)	1st Dept: 184 AD3d 80	5/27/21

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(May 1, 2021 through May 31, 2021)

People v Abboud	2d Dept: 192 AD3d 698 (Nassau)	denied 5/16/21 (Wilson, J.)
People v Allaico	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 70 Misc 3d 134(A) (Queens)	denied 5/26/21 (Stein, J.)
People v Alvarez (Anthony)	App Div, 1st Dept: 2020 NY Slip Op 64101(U) (NY)	denied 5/12/21 (Fahey, J.)
People v Alvarez (Eduardo)	2d Dept: 191 AD3d 1015 (Nassau)	denied 5/11/21 (Stein, J.)
People v Anderson	County Ct, 3/15/21 (Genesee)	denied 5/7/21 (DiFiore, Ch. J.)
People v Antoine	2d Dept: 189 AD3d 1445 (Kings)	denied 5/16/21 (DiFiore, Ch. J.)
People v Aponte	3d Dept: 190 AD3d 1031 (Rensselaer)	denied 5/12/21 (Fahey, J.)
People v Arrington	2d Dept: 192 AD3d 700 (Kings)	denied 5/26/21 (Stein, J.)
People v Atson	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 71 Misc 3d 130(A) (Kings)	denied 5/29/21 (DiFiore, Ch. J.)
People v Avera	3d Dept: 192 AD3d 1382 (Schenectady)	denied 5/7/21 (DiFiore, Ch. J.)
People v Baker	4th Dept: 191 AD3d 1402 (Orleans)	denied 5/19/21 (Fahey, J.)
People v Ballo	1st Dept: 191 AD3d 482 (NY)	denied 5/24/21 (Fahey, J.)
People v Barber	4th Dept: 192 AD3d 1679 (Genesee)	denied 5/12/21 (Fahey, J.)

People v Barr	4th Dept: 192 AD3d 1571 (Genesee)	denied 5/10/21 (Rivera, J.)
People v Bell (Rasheen)	4th Dept: 191 AD3d 1308 (Monroe)	denied 5/28/21 (Wilson, J.) (Appeal No. 1)
People v Bell (Rasheen)	4th Dept: 191 AD3d 1311 (Monroe)	denied 5/28/21 (Wilson, J.) (Appeal No. 2)
People v Bell (Rasheen)	4th Dept: 191 AD3d 1311 (Monroe)	denied 5/28/21 (Wilson, J.) (Appeal No. 3)
People v Bentley	4th Dept: 191 AD3d 1392 (Livingston)	denied 5/17/21 (DiFiore, Ch. J.)
People v Biaselli	4th Dept: 191 AD3d 1400 (Orleans)	denied 5/16/21 (Wilson, J.)
People v Birch	App Term, 1st Dept: 70 Misc 3d 144(A) (Bronx)	denied 5/28/21 (DiFiore, Ch. J.)
People v Birt	App Div, 2d Dept: 2021 NY Slip Op 61262(U) (Kings)	dismissed 5/18/21 (DiFiore, Ch. J.)
People v Bonacci	3d Dept: 188 AD3d 1447 (Delaware)	denied 5/11/21 (Rivera, J.)
People v Boone	2d Dept: 192 AD3d 905 (Dutchess)	denied 5/12/21 (Fahey, J.)
People v Bradford	1st Dept: 191 AD3d 484 (NY)	denied 5/6/21 (DiFiore, Ch. J.)
People v Brady	4th Dept: 192 AD3d 1557 (Monroe)	denied 5/20/21 (Garcia, J.)
People v Brice	1st Dept: 193 AD3d 484 (Bronx)	denied 5/28/21 (Wilson, J.)
People v Brooks	2d Dept: 192 AD3d 1134 (Kings)	denied 5/25/21 (Garcia, J.)
People v Brown	2d Dept: 193 AD3d 758 (Kings)	denied 5/28/21 (DiFiore, Ch. J.)
People v Burden	4th Dept: 191 AD3d 1260 (Monroe)	denied 5/16/21 (Wilson, J.)
People v Burgos	1st Dept: 190 AD3d 431 (NY)	granted 5/4/21 (Rivera, J.)
People v Burroughs	1st Dept: 192 AD3d 436 (NY)	denied 5/5/21 (Stein, J.)
People v Campbell	2d Dept: 192 AD3d 822 (Queens)	denied 5/12/21 (Fahey, J.)
People v Carl	3d Dept: 188 AD3d 1304 (Warren)	denied 5/5/21 (Stein, J.)
People v Casey	1st Dept: 193 AD3d 600 (NY)	denied 5/21/21 (Fahey, J.)
People v Chizor	2d Dept: 190 AD3d 763 (Queens)	denied 5/16/21 (Wilson, J.)
People v Clark	4th Dept: 191 AD3d 1485 (Erie)	denied 5/18/21 (Stein, J.)
People v Collier	App Div, 3d Dept: 2021 NY Slip Op 64116(U) (Rensselaer)	denied 5/29/21 (DiFiore, Ch. J.)

MEMORANDA

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People v Colon (Genesis)	4th Dept: 192 AD3d 1567 (Monroe)	denied 5/29/21 (DiFiore, Ch. J.)
People v Colon (Kervin)	1st Dept: 190 AD3d 563 (Bronx)	denied 5/21/21 (Wilson, J.)
People v Colon-Lopez	4th Dept: 192 AD3d 1567 (Monroe)	denied 5/29/21 (DiFiore, Ch. J.)
People v Coppedge	App Term, 1st Dept: 70 Misc 3d 139(A) (NY)	denied 5/26/21 (Stein, J.)
People v Cousar	2d Dept: 191 AD3d 694 (Putnam)	denied 5/1/21 (DiFiore, Ch. J.)
People v Cruz	4th Dept: 192 AD3d 1683 (Monroe)	denied 5/18/21 (DiFiore, Ch. J.)
People v Curry	4th Dept: 192 AD3d 1649 (Onondaga)	denied 5/26/21 (DiFiore, Ch. J.)
People v Daniels	4th Dept: 192 AD3d 1501 (Monroe)	denied 5/26/21 (DiFiore, Ch. J.)
People v DeJesus	1st Dept: 192 AD3d 646 (NY)	denied 5/12/21 (Fahey, J.)
People v DeJesus-Ocasio	3d Dept: 192 AD3d 1264 (Schenectady)	denied 5/26/21 (DiFiore, Ch. J.)
People v Delaus	County Ct, 1/14/21 (Monroe)	denied 5/30/21 (Garcia, J.)
People v Demellier	App Div, 3d Dept: 2021 NY Slip Op 61424(U) (Chemung)	denied 5/21/21 (Wilson, J.)
People v Diaz (Miguel)	1st Dept: 192 AD3d 410 (Bronx)	denied 5/12/21 (Fahey, J.)
People v Diaz (Randolfo)	2d Dept: 189 AD3d 1063 (Kings)	denied 5/7/21 (DiFiore, Ch. J.)
People v Duncan	App Term, 1st Dept: 71 Misc 3d 128(A) (NY)	denied 5/21/21 (Fahey, J.)
People v Edwards	4th Dept: 188 AD3d 1763 (Onondaga)	denied 5/5/21 (Stein, J.)
People v Esquilin	4th Dept: 192 AD3d 1481 (Monroe)	denied 5/16/21 (Wilson, J.)
People v Etienne	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 70 Misc 3d 144(A) (Kings)	denied 5/11/21 (Stein, J.)
People v Eweka	1st Dept: 192 AD3d 488 (NY)	denied 5/16/21 (Wilson, J.)
People v Fauntleroy	2d Dept: 191 AD3d 697 (Kings)	denied 5/4/21 (DiFiore, Ch. J.)
People v Felong	4th Dept: 192 AD3d 1664 (Monroe)	denied 5/21/21 (Fahey, J.)
People v Figueroa	4th Dept: 192 AD3d 1655 (Monroe)	denied 5/28/21 (Garcia, J.)
People v Fletcher	4th Dept: 192 AD3d 1480 (Livingston)	denied 5/17/21 (Rivera, J.)
People v Flores	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 70 Misc 3d 142(A) (Queens)	denied 5/11/21 (Rivera, J.)
People v Folks	App Div, 1st Dept: 2021 NY Slip Op 61523(U) (Bronx)	denied 5/21/21 (Fahey, J.)

People v Franklin	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 70 Misc 3d 142(A) (Kings)	denied 5/4/21 (DiFiore, Ch. J.)
People v Fraser	2d Dept: 192 AD3d 702 (Nassau)	denied 5/4/21 (DiFiore, Ch. J.)
People v Funches	App Div, 1st Dept: 2021 NY Slip Op 61135(U) (NY)	denied 5/12/21 (Fahey, J.)
People v Gaines	App Div, 1st Dept: 2020 NY Slip Op 60354(U) (Bronx)	denied 5/25/21 (Rivera, J.)
People v Gami	App Term, 1st Dept: 71 Misc 3d 134(A) (NY)	denied 5/28/21 (Wilson, J.)
People v Gantt	2d Dept: 192 AD3d 907 (Queens)	denied 5/18/21 (Stein, J.)
People v Garcia (Andrew)	App Term, 2d Dept, 9th & 10th Jud Dists: 69 Misc 3d 146(A) (Suffolk)	denied 5/24/21 (DiFiore, Ch. J.)
People v Garcia (Brandon)	1st Dept: 192 AD3d 461 (Bronx)	denied 5/12/21 (Stein, J.)
People v Gassner	3d Dept: 193 AD3d 1182 (Schuyler)	denied 5/25/21 (Rivera, J.)
People v Gittens	2d Dept: 193 AD3d 877 (Kings)	denied 5/25/21 (Rivera, J.)
People v Gloss	App Div, 4th Dept, 1/27/21 (Monroe)	dismissed 5/4/21 (Rivera, J.)
People v Gonzalez (Jorge)	3d Dept: 184 AD3d 899 (Sullivan)	denied reconsideration 5/27/21 (DiFiore, Ch. J.)
People v Gonzalez (Melvin)	4th Dept: 192 AD3d 1683 (Monroe)	denied 5/18/21 (DiFiore, Ch. J.)
People v Graham	2d Dept: 188 AD3d 909 (Suffolk)	denied 5/5/21 (Stein, J.)
People v Grant (Douglas)	4th Dept: 189 AD3d 2112 (Livingston)	denied 5/5/21 (Stein, J.)
People v Grant (Elizabeth)	2d Dept: 189 AD3d 1458 (Queens)	denied 5/27/21 (Stein, J.)
People v Green	3d Dept: 190 AD3d 1094 (Tompkins)	denied reconsideration 5/20/21 (Garcia, J.)
People v Greer	4th Dept: 189 AD3d 2142 (Erie)	denied 5/5/21 (Stein, J.)
People v Guerrero	2d Dept: 189 AD3d 1460 (Kings)	denied 5/27/21 (Stein, J.)
People v Guevara-Lopez	2d Dept: 189 AD3d 881 (Suffolk)	denied 5/11/21 (Garcia, J.)
People v Hairston	2d Dept: 189 AD3d 1696 (Westchester)	denied 5/26/21 (Stein, J.)
People v Harrison	1st Dept: 190 AD3d 656 (NY)	denied 5/5/21 (Stein, J.)
People v Heath	4th Dept: 192 AD3d 1473 (Erie)	denied 5/16/21 (DiFiore, Ch. J.)
People v Hemingway	3d Dept: 192 AD3d 1266 (Rensselaer)	denied 5/26/21 (Garcia, J.)

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People v Hernandez (Edison)	4th Dept: 192 AD3d 1505 (Monroe)	denied 5/14/21 (Rivera, J.)
People v Hernandez (Orlando)	4th Dept: 192 AD3d 1528 (Livingston)	denied 5/21/21 (Fahey, J.)
People v Herrera	1st Dept: 193 AD3d 189 (NY)	dismissed 5/28/21 (DiFiore, Ch. J.)
People v Hibbert	4th Dept: 189 AD3d 2170 (Monroe)	denied reconsideration 5/19/21 (DiFiore, Ch. J.)
People v Hillman	App Term, 2d Dept, 9th & 10th Jud Dists: 71 Misc 3d 127(A) (Westchester)	denied 5/25/21 (Rivera, J.)
People v Hisler	2d Dept: 189 AD3d 1696 (Queens)	denied 5/28/21 (Garcia, J.)
People v Hockenbury	3d Dept: 190 AD3d 1155 (Albany)	denied 5/21/21 (Fahey, J.)
People v Holt (Zandrea)	4th Dept: 192 AD3d 1680 (Monroe)	denied 5/20/21 (DiFiore, Ch. J.)
People v Holt (Zondre)	4th Dept: 192 AD3d 1680 (Monroe)	denied 5/20/21 (DiFiore, Ch. J.)
People v Hope	2d Dept: 192 AD3d 1044 (Kings)	denied 5/27/21 (Garcia, J.)
People v Horton	App Div, 3d Dept: 2021 NY Slip Op 62872(U) (Tompkins)	dismissed 5/11/21 (Stein, J.)
People v Hursh	4th Dept: 191 AD3d 1453 (Monroe)	denied 5/21/21 (Wilson, J.)
People v Jackson	1st Dept: 192 AD3d 486 (NY)	denied 5/24/21 (Stein, J.)
People v Jaycox	4th Dept: 192 AD3d 1497 (Erie)	denied 5/16/21 (Wilson, J.)
People v Jennings	4th Dept: 191 AD3d 1429 (Onondaga)	granted 5/13/21 (Stein, J.)
People v Jessamy	2d Dept: 192 AD3d 704 (Westchester)	denied 5/14/21 (Rivera, J.)
People v Johnson (Nathan)	1st Dept: 193 AD3d 532 (NY)	denied 5/28/21 (Wilson, J.)
People v Johnson (Orlando)	2d Dept: 179 AD3d 1097 (Westchester)	denied 5/10/21 (Garcia, J.)
People v Jones (Andre)	4th Dept: 192 AD3d 1656 (Erie)	denied 5/31/21 (Garcia, J.)
People v Jones (Daniel)	4th Dept: 192 AD3d 1524 (Onondaga)	denied 5/4/21 (Rivera, J.)
People v Jones-McFarland	2d Dept: 191 AD3d 1019 (Kings)	denied 5/7/21 (DiFiore, Ch. J.)
People v Josue F.	4th Dept: 191 AD3d 1483 (Monroe)	denied 5/16/21 (Wilson, J.) (Appeal No. 1)
People v Josue F.	4th Dept: 191 AD3d 1484 (Monroe)	denied 5/16/21 (Wilson, J.) (Appeal No. 2)
People v Keene	3d Dept: 192 AD3d 1195 (Albany)	denied 5/21/21 (Fahey, J.)

People v King	1st Dept: 192 AD3d 520 (NY)	denied 5/26/21 (Garcia, J.)
People v Kinsler	2d Dept: 192 AD3d 913 (Queens)	denied 5/10/21 (Rivera, J.)
People v Knowings	App Term, 1st Dept: 70 Misc 3d 141(A) (NY)	denied 5/4/21 (Garcia, J.)
People v Lacen	2d Dept: 192 AD3d 913 (Kings)	denied 5/11/21 (Garcia, J.)
People v Lampedusa	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 70 Misc 3d 138(A) (Queens)	denied 5/4/21 (Stein, J.)
People v Lashley	1st Dept: 192 AD3d 434 (Bronx)	denied 5/13/21 (Stein, J.)
People v Laufer	2d Dept: 187 AD3d 1052 (Queens)	denied reconsideration 5/27/21 (Garcia, J.)
People v Lebron	4th Dept: 192 AD3d 1473 (Onondaga)	denied 5/12/21 (Fahey, J.)
People v Lee	1st Dept: 192 AD3d 602 (NY)	denied 5/28/21 (Wilson, J.)
People v Lisboa	App Term, 1st Dept: 70 Misc 3d 144(A) (NY)	denied 5/4/21 (Rivera, J.)
People v Little	1st Dept: 192 AD3d 408 (Bronx)	denied 5/10/21 (Garcia, J.)
People v Lopez	1st Dept: 191 AD3d 511 (Bronx)	denied 5/16/21 (Wilson, J.)
People v Lynch	4th Dept: 191 AD3d 1476 (Herkimer)	denied 5/7/21 (DiFiore, Ch. J.)
People v Lytch	1st Dept: 193 AD3d 517 (Bronx)	denied 5/31/21 (Garcia, J.)
People v Mack	4th Dept: 192 AD3d 1495 (Monroe)	denied 5/10/21 (Rivera, J.)
People v Maldonado	1st Dept: 192 AD3d 462 (Bronx)	denied 5/10/21 (Rivera, J.)
People v Martinez	1st Dept: 192 AD3d 461 (NY)	denied 5/4/21 (Rivera, J.)
People v McBean	4th Dept: 192 AD3d 1706 (Steuben)	denied 5/20/21 (Garcia, J.)
People v McFadden	App Div, 2d Dept: 2020 NY Slip Op 68214(U) (Rockland)	denied 5/5/21 (Stein, J.)
People v McLamore	4th Dept: 191 AD3d 1413 (Wyoming)	denied 5/16/21 (Wilson, J.)
People v Metcalf	1st Dept: 192 AD3d 460 (NY)	denied 5/10/21 (Rivera, J.)
People v Mike	3d Dept: 190 AD3d 1102 (Schenectady)	denied 5/7/21 (Stein, J.)
People v Momoh	2d Dept: 192 AD3d 915 (Rockland)	denied 5/27/21 (Garcia, J.)
People v Monk	3d Dept: 189 AD3d 1970 (Tompkins)	denied 5/5/21 (Stein, J.)

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People v Mosher	3d Dept: 191 AD3d 1170 (Saratoga)	denied 5/28/21 (Garcia, J.)
People v Murray	1st Dept: 192 AD3d 434 (Bronx)	denied 5/13/21 (Stein, J.)
People v Nathan	4th Dept: 192 AD3d 1502 (Monroe)	denied 5/14/21 (Rivera, J.)
People v Nelson	4th Dept: 191 AD3d 1417 (Monroe)	denied 5/26/21 (DiFiore, Ch. J.)
People v Nelsongil	1st Dept: 190 AD3d 502 (Bronx)	denied 5/5/21 (Stein, J.)
People v Obando	App Term, 1st Dept: 70 Misc 3d 130(A) (Bronx)	denied 5/12/21 (Fahey, J.)
People v Olavarria	1st Dept: 192 AD3d 520 (Bronx)	denied 5/12/21 (Fahey, J.)
People v Ortiz	1st Dept: 189 AD3d 587 (NY)	granted 5/12/21 (Fahey, J.)
People v Paskins	1st Dept: 193 AD3d 484 (NY)	denied 5/25/21 (Rivera, J.)
People v Patterson	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 70 Misc 3d 144(A) (Kings)	denied 5/25/21 (Rivera, J.)
People v Peterson	1st Dept: 193 AD3d 431 (NY)	denied 5/25/21 (Rivera, J.)
People v Pharaoh	3d Dept: 190 AD3d 1031 (Rensselaer)	denied 5/12/21 (Fahey, J.)
People v Porterfield	4th Dept: 192 AD3d 1662 (Erie)	denied 5/12/21 (Fahey, J.)
People v Prentice	4th Dept: 191 AD3d 1369 (Allegany)	denied 5/13/21 (Stein, J.)
People v Puccio	2d Dept: 191 AD3d 1022 (Dutchess)	denied 5/20/21 (Garcia, J.)
People v Quattrocchi	1st Dept: 190 AD3d 653 (NY)	denied 5/16/21 (Wilson, J.)
People v Quiles	1st Dept: 189 AD3d 512 (Bronx)	denied 5/16/21 (Wilson, J.)
People v Rahman	2d Dept: 189 AD3d 1616 (Queens)	denied 5/17/21 (DiFiore, Ch. J.)
People v Ramirez (Bryan)	County Ct, 4/1/21 (Rensselaer)	denied 5/20/21 (Rivera, J.)
People v Ramirez (Jonathan)	2d Dept: 192 AD3d 825 (Queens)	denied 5/13/21 (Stein, J.)
People v Rath	4th Dept: 192 AD3d 1600 (Erie)	denied 5/20/21 (Garcia, J.)
People v Regan	3d Dept: 192 AD3d 1393 (Tompkins)	denied 5/25/21 (Rivera, J.)
People v Richardson	1st Dept: 192 AD3d 432 (NY)	denied 5/4/21 (Rivera, J.)
People v Roberts	2d Dept: 191 AD3d 806 (Kings)	denied 5/4/21 (DiFiore, Ch. J.)
People v Rodriguez	1st Dept: 190 AD3d 429 (Bronx)	denied 5/24/21 (Stein, J.)

People v Ruffin	3d Dept: 191 AD3d 1174 (Saratoga)	denied 5/24/21 (DiFiore, Ch. J.)
People v Santos	1st Dept: 192 AD3d 645 (Bronx)	denied 5/17/21 (Rivera, J.)
People v Schafer	4th Dept: 185 AD3d 1479 (Niagara)	denied reconsideration 5/5/21 (Stein, J.)
People v Sedenio	2d Dept: 188 AD3d 1269 (Kings)	denied 5/13/21 (Stein, J.)
People v Settles	4th Dept: 192 AD3d 1510 (Ontario)	denied 5/11/21 (Garcia, J.)
People v 7 Minute Man	3d Dept: 192 AD3d 1266 (Rensselaer)	denied 5/26/21 (Garcia, J.)
People v Sharipov	App Term, 1st Dept: 69 Misc 3d 134(A) (NY)	denied 5/5/21 (Stein, J.)
People v Shaw	1st Dept: 192 AD3d 431 (Bronx)	denied 5/10/21 (Garcia, J.)
People v Shelton	4th Dept: 192 AD3d 1506 (Cayuga)	denied 5/12/21 (Fahey, J.)
People v Smith	App Term, 2d Dept, 9th & 10th Jud Dists: 71 Misc 3d 127(A) (Nassau)	denied 5/28/21 (Wilson, J.)
People v Solano	3d Dept: 190 AD3d 1031 (Rensselaer)	denied 5/12/21 (Fahey, J.)
People v Solomon	2d Dept: 192 AD3d 921 (Kings)	denied 5/10/21 (Garcia, J.)
People v Spencer	4th Dept: 191 AD3d 1331 (Erie)	denied 5/11/21 (Stein, J.)
People v Spradlin (Benjamin)	3d Dept: 188 AD3d 1454 (Tompkins)	denied 5/24/21 (Stein, J.)
People v Spradlin (Benjamin)	3d Dept: 192 AD3d 1270 (Tompkins)	denied 5/24/21 (Stein, J.)
People v Stevenson	2d Dept: 191 AD3d 905 (Kings)	denied 5/16/21 (Wilson, J.)
People v Stewart	4th Dept: 192 AD3d 1498 (Livingston)	denied 5/12/21 (Fahey, J.)
People v Stiebritz	2d Dept: 192 AD3d 705 (Dutchess)	denied 5/20/21 (Garcia, J.)
People v Stines	App Div, 3d Dept: 2021 NY Slip Op 61738(U) (Franklin)	dismissed 5/4/21 (Rivera, J.)
People v Swinton	App Div, 1st Dept: 2020 NY Slip Op 76897(U) (Bronx)	dismissed 5/25/21 (Rivera, J.)
People v Tagiev	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 70 Misc 3d 47 (Kings)	denied 5/24/21 (Stein, J.)
People v Taylor	1st Dept: 189 AD3d 645 (NY)	denied 5/16/21 (Wilson, J.)
People v Thaxton	3d Dept: 191 AD3d 1166 (Washington)	denied 5/4/21 (DiFiore, Ch. J.)
People v Thomas (Dwight)	1st Dept: 190 AD3d 591 (NY)	denied 5/18/21 (Stein, J.)
People v Thomas (Gerald)	App Term, 1st Dept: 70 Misc 3d 144(A) (NY)	denied 5/6/21 (DiFiore, Ch. J.)

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People v Thomas (Shon)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 70 Misc 3d 142(A) (Kings)	denied 5/26/21 (Stein, J.)
People v Thompson	4th Dept: 191 AD3d 1241 (Yates)	denied 5/24/21 (Stein, J.)
People v Timmons	4th Dept: 189 AD3d 2170 (Monroe)	denied 5/16/21 (Wilson, J.)
People v Torrence	App Term, 1st Dept: 70 Misc 3d 136(A) (NY)	denied 5/24/21 (Stein, J.)
People v Tripathy	1st Dept: 187 AD3d 515 (NY)	denied reconsideration 5/18/21 (Stein, J.)
People v Tyshe	1st Dept: 190 AD3d 502 (Bronx)	denied 5/5/21 (Stein, J.)
People v Uslov	App Term, 1st Dept: 71 Misc 3d 128(A) (NY)	denied 5/14/21 (Rivera, J.)
People v Villena	2d Dept: 192 AD3d 922 (Queens)	denied 5/25/21 (Rivera, J.)
People v Walker (Ismael)	3d Dept: 190 AD3d 1102 (Schenectady)	denied 5/7/21 (Stein, J.)
People v Walker (Tilek)	2d Dept: 189 AD3d 1273 (Suffolk)	denied 5/5/21 (Stein, J.)
People v Walker (Tyshawn)	3d Dept: 191 AD3d 1154 (Albany)	denied 5/27/21 (Stein, J.)
People v Washburn	3d Dept: 192 AD3d 1267 (Saratoga)	denied 5/21/21 (Fahey, J.)
People v Wiggins	App Div, 2d Dept: 2021 NY Slip Op 60109(U) (Orange)	denied reconsideration 5/10/21 (Rivera, J.)
People v Wilcox	4th Dept: 192 AD3d 1540 (Monroe)	denied 5/20/21 (Garcia, J.)
People v Williams (Nick)	4th Dept: 192 AD3d 1461 (Livingston)	denied 5/4/21 (Rivera, J.)
People v Williams (Otha)	1st Dept: 192 AD3d 562 (NY)	denied 5/12/21 (Fahey, J.)
People v Williams (Tyrell)	1st Dept: 192 AD3d 487 (Bronx)	denied 5/25/21 (Rivera, J.)
People v Willie R.	4th Dept: 191 AD3d 1311 (Monroe)	denied 5/28/21 (Wilson, J.) (Appeal No. 2)
People v Wingate	2d Dept: 191 AD3d 708 (Queens)	denied 5/12/21 (Fahey, J.)
People v Woods	App Div, 3d Dept: 2021 NY Slip Op 62353(U) (Albany)	denied 5/4/21 (Rivera, J.)
People v Yannarilli	4th Dept: 191 AD3d 1327 (Allegany)	denied 5/4/21 (Garcia, J.)
People v Young (Christopher)	4th Dept: 192 AD3d 1634 (Monroe)	denied 5/21/21 (Fahey, J.) (Appeal No. 1)
People v Young (Christopher)	4th Dept: 192 AD3d 1634 (Monroe)	denied 5/21/21 (Fahey, J.) (Appeal No. 2)

People v Zdatny	4th Dept: 192 AD3d 1581 (Monroe)	denied 5/11/21 (Garcia, J.)
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL
Decisions of Appellate Division Justices *
(May 1, 2021 through May 31, 2021)

People v Cuencas	2d Dept: 192 AD3d 109 (Kings)	granted 5/7/21 (Chambers, J.)
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**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF
COURT OF APPEALS OR ON CONSENT**
(June 1, 2021 through June 30, 2021)

Mayorga v 75 Plaza LLC	1st Dept: 191 AD3d 606	6/22/21
Wright, Matter of (Coveny)	3d Dept: 188 AD3d 1345	6/22/21

APPEALS WITHDRAWN AND DISCONTINUED
(June 1, 2021 through June 30, 2021)

Ninivaggi v County of Nassau	2d Dept: 177 AD3d 981	6/28/21
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL
(June 1, 2021 through June 30, 2021)

People v Ali	2d Dept: 192 AD3d 1132 (Westchester)	denied 6/8/21 (Rivera, J.)
People v Aragundi	2d Dept: 194 AD3d 733 (Queens)	denied 6/30/21 (Wilson, J.)
People v Arias	1st Dept: 192 AD3d 603 (NY)	denied 6/4/21 (Wilson, J.)
People v Avila	3d Dept: 194 AD3d 1120 (Clinton)	denied 6/23/21 (Rivera, J.)
People v Aviles	App Term, 1st Dept: 71 Misc 3d 133(A) (NY)	denied 6/17/21 (Garcia, J.)
People v Banaszek	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 71 Misc 3d 132(A) (Kings)	denied 6/4/21 (Rivera, J.)
People v Banks	2d Dept: 192 AD3d 904 (Kings)	denied 6/25/21 (Fahey, J.)
People v "Biggie"	2d Dept: 176 AD3d 1236 (Dutchess)	denied 6/3/21 (DiFiore, Ch. J.)
People v Bishop	2d Dept: 193 AD3d 755 (Nassau)	denied 6/29/21 (DiFiore, Ch. J.)

* Includes only applications that were granted.

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People v Blanding	App Div, 1st Dept: 2020 NY Slip Op 73471(U) (NY)	denied reconsideration 6/25/21 (Fahey, J.)
People v Bonton	App Div, 2d Dept: 2021 NY Slip Op 60908(U) (Kings)	denied reconsideration 6/4/21 (DiFiore, Ch. J.)
People v Bowman	3d Dept: 194 AD3d 1123 (Albany)	denied 6/28/21 (Garcia, J.)
People v Boyd	4th Dept: 188 AD3d 1691 (Oneida)	denied reconsideration 6/16/21 (DiFiore, Ch. J.)
People v Brickhouse	2d Dept: 189 AD3d 1451 (Westchester)	denied reconsideration 6/21/21 (Rivera, J.)
People v Brooks	4th Dept: 193 AD3d 1442 (Erie)	denied 6/4/21 (Rivera, J.)
People v Butler (Calvin)	4th Dept: 192 AD3d 1701 (Ontario)	denied 6/15/21 (Rivera, J.) (Appeal No. 1)
People v Butler (Calvin)	4th Dept: 192 AD3d 1705 (Seneca)	denied 6/15/21 (Rivera, J.) (Appeal No. 2)
People v Butler (Calvin)	4th Dept: 192 AD3d 1705 (Seneca)	denied 6/15/21 (Rivera, J.) (Appeal No. 3)
People v Butler (Keith)	2d Dept: 193 AD3d 876 (Suffolk)	denied 6/30/21 (Wilson, J.)
People v Cahill	4th Dept: 192 AD3d 1634 (Onondaga)	denied 6/14/21 (Garcia, J.)
People v Castillo	1st Dept: 194 AD3d 451 (NY)	denied 6/28/21 (Garcia, J.)
People v Cazeau	3d Dept: 192 AD3d 1388 (Albany)	denied 6/4/21 (Wilson, J.)
People v Cecchini	App Div, 4th Dept: 2021 NY Slip Op 62954(U) (Erie)	denied 6/30/21 (Wilson, J.)
People v Chalen	1st Dept: 193 AD3d 464 (NY)	denied 6/25/21 (Fahey, J.)
People v Chavo	3d Dept: 194 AD3d 1120 (Clinton)	denied 6/23/21 (Rivera, J.)
People v Chianese	2d Dept: 194 AD3d 737 (Suffolk)	denied 6/15/21 (Rivera, J.)
People v Coffie	4th Dept: 192 AD3d 1643 (Monroe)	denied 6/10/21 (DiFiore, Ch. J.) (Appeal No. 2)
People v Colon	App Term, 1st Dept: 71 Misc 3d 134(A) (Bronx)	denied 6/25/21 (Fahey, J.)
People v Constable	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 70 Misc 3d 140(A) (Kings)	denied 6/25/21 (Fahey, J.)

People v Cook	2d Dept: 193 AD3d 760 (Kings)	denied 6/9/21 (Garcia, J.)
People v Cooper (Carl)	2d Dept: 192 AD3d 823 (Kings)	denied 6/4/21 (Wilson, J.)
People v Cooper (Kazzim)	1st Dept: 192 AD3d 644 (NY)	denied 6/25/21 (Fahey, J.)
People v Corey	1st Dept: 190 AD3d 620 (NY)	denied 6/2/21 (Stein, J.)
People v Corley	App Term, 1st Dept: 71 Misc 3d 134(A) (Bronx)	denied 6/28/21 (Garcia, J.)
People v Cortes	1st Dept: 193 AD3d 659 (NY)	denied 6/29/21 (DiFiore, Ch. J.)
People v Curry	1st Dept: 192 AD3d 601 (NY)	denied 6/10/21 (DiFiore, Ch. J.)
People v David A.	1st Dept: 193 AD3d 515 (Bronx)	denied 6/24/21 (DiFiore, Ch. J.)
People v Davis	4th Dept: 193 AD3d 1352 (Monroe)	denied 6/25/21 (DiFiore, Ch. J.)
People v DeJesus	1st Dept: 192 AD3d 561 (Bronx)	denied 6/1/21 (Garcia, J.)
People v Dennis	2d Dept: 192 AD3d 1137 (Richmond)	denied 6/25/21 (Fahey, J.)
People v Devalle	4th Dept: 194 AD3d 1411 (Monroe)	denied 6/28/21 (Fahey, J.)
People v Diluca	2d Dept: 193 AD3d 1073 (Queens)	denied 6/24/21 (DiFiore, Ch. J.)
People v Dilworth	1st Dept: 189 AD3d 636 (NY)	denied reconsideration 6/10/21 (Wilson, J.)
People v Dray	1st Dept: 193 AD3d 551 (NY)	denied 6/24/21 (DiFiore, Ch. J.)
People v Dupuis	4th Dept: 192 AD3d 1626 (Steuben)	denied 6/11/21 (Wilson, J.)
People v Elliot	1st Dept: 193 AD3d 660 (NY)	denied 6/30/21 (Wilson, J.)
People v Ellis	1st Dept: 194 AD3d 428 (Bronx)	denied 6/30/21 (Wilson, J.)
People v Espinal	1st Dept: 193 AD3d 429 (Bronx)	denied 6/17/21 (Garcia, J.)
People v Etienne	2d Dept: 193 AD3d 971 (Nassau)	denied 6/25/21 (Fahey, J.)
People v Ferguson	3d Dept: 193 AD3d 1253 (Rensselaer)	denied 6/30/21 (Wilson, J.)
People v Fidelis	1st Dept: 193 AD3d 516 (Bronx)	denied 6/1/21 (Garcia, J.)
People v Finster	4th Dept: 192 AD3d 1634 (Oneida)	denied 6/8/21 (Garcia, J.)
People v Fletcher	4th Dept: 192 AD3d 1667 (Monroe)	denied 6/25/21 (Fahey, J.)

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People v Fonvil	2d Dept: 193 AD3d 1073 (Rockland)	denied 6/17/21 (Garcia, J.)
People v Frasqueri	1st Dept: 193 AD3d 464 (Bronx)	denied 6/30/21 (Wilson, J.)
People v Fulmer-Salvador	1st Dept: 193 AD3d 598 (NY)	denied 6/17/21 (Garcia, J.)
People v Galloway	1st Dept: 193 AD3d 531 (NY)	denied 6/29/21 (DiFiore, Ch. J.)
People v Gardner	1st Dept: 193 AD3d 468 (NY)	denied 6/30/21 (Wilson, J.)
People v Garville	2d Dept: 194 AD3d 744 (Queens)	denied 6/16/21 (Rivera, J.)
People v Genao	App Term, 1st Dept: 67 Misc 3d 140(A) (NY)	denied 6/11/21 (DiFiore, Ch. J.)
People v Geter	2d Dept: 192 AD3d 703 (Dutchess)	denied 6/30/21 (Wilson, J.)
People v Goldstein	2d Dept: 193 AD3d 877 (Kings)	denied 6/11/21 (Wilson, J.)
People v Grace	App Div, 1st Dept: 2020 NY Slip Op 73470(U) (NY)	denied reconsideration 6/30/21 (Wilson, J.)
People v Grant	App Div, 1st Dept: 2020 NY Slip Op 73471(U) (NY)	denied reconsideration 6/25/21 (Fahey, J.)
People v Greenland	App Div, 2d Dept: 2020 NY Slip Op 72012(U) (Westchester)	dismissed 6/25/21 (DiFiore, Ch. J.)
People v Hall	1st Dept: 187 AD3d 520 (Bronx)	denied 6/16/21 (DiFiore, Ch. J.)
People v Hancock	App Term, 1st Dept: 71 Misc 3d 133(A) (NY)	denied 6/17/21 (Garcia, J.)
People v Haynie	1st Dept: 190 AD3d 654 (NY)	denied 6/25/21 (Fahey, J.)
People v Hennegan	1st Dept: 193 AD3d 557 (Bronx)	denied 6/30/21 (Wilson, J.)
People v Hill (Michael)	4th Dept: 188 AD3d 1756 (Niagara)	dismissed 6/30/21 (Wilson, J.)
People v Hill (Ron)	App Term, 1st Dept: 69 Misc 3d 145(A) (Bronx)	granted 6/4/21 (DiFiore, Ch. J.)
People v Holley	4th Dept: 188 AD3d 1644 (Jefferson)	denied 6/28/21 (Garcia, J.)
People v Hussein	4th Dept: 192 AD3d 1705 (Onondaga)	denied 6/25/21 (Fahey, J.)
People v Infinger	3d Dept: 194 AD3d 1183 (Clinton)	denied 6/28/21 (Fahey, J.)
People v Jain	1st Dept: 195 AD3d 428 (NY)	denied 6/23/21 (Rivera, J.)
People v Johnson (Arsenio)	4th Dept: 194 AD3d 1401 (Monroe)	denied 6/23/21 (Rivera, J.)
People v Johnson (Riza)	4th Dept: 192 AD3d 1494 (Monroe)	denied 6/4/21 (Wilson, J.)

People v Johnson (Robert)	1st Dept: 192 AD3d 603 (NY)	denied 6/4/21 (Wilson, J.)
People v Johnson-McLean	App Term, 1st Dept: 71 Misc 3d 31 (Bronx)	denied 6/14/21 (Garcia, J.)
People v Kattau	2d Dept: 192 AD3d 910 (Suffolk)	denied 6/10/21 (DiFiore, Ch. J.)
People v Laboriel	2d Dept: 191 AD3d 802 (Queens)	denied* 6/11/21 (Wilson, J.)
People v Leflore	App Div, 4th Dept, 2/24/21 (Monroe)	dismissed 6/4/21 (Wilson, J.)
People v Lemmo	2d Dept: 192 AD3d 1143 (Queens)	dismissed 6/25/21 (Fahey, J.)
People v Letizia	4th Dept: 191 AD3d 1241 (Erie)	denied reconsideration 6/25/21 (Fahey, J.)
People v Lewis	2d Dept: 189 AD3d 887 (Suffolk)	denied 6/4/21 (Wilson, J.)
People v Lockett	App Term, 2d Dept, 9th & 10th Jud Dists: 71 Misc 3d 127(A) (Orange)	denied 6/24/21 (DiFiore, Ch. J.)
People v Long	2d Dept: 193 AD3d 978 (Kings)	denied 6/10/21 (Rivera, J.)
People v Lopez	2d Dept: 193 AD3d 1077 (Kings)	denied 6/24/21 (DiFiore, Ch. J.)
People v Luciano	2d Dept: 192 AD3d 1045 (Queens)	denied 6/30/21 (DiFiore, Ch. J.)
People v Maisonette	3d Dept: 192 AD3d 1325 (Schenectady)	denied 6/29/21 (DiFiore, Ch. J.)
People v Malik H.	2d Dept: 193 AD3d 878 (Kings)	denied 6/16/21 (DiFiore, Ch. J.)
People v Marlett	3d Dept: 191 AD3d 1183 (Albany)	denied 6/24/21 (DiFiore, Ch. J.)
People v Mayorga	2d Dept: 192 AD3d 913 (Dutchess)	denied 6/30/21 (Wilson, J.)
People v McCullars	App Div, 4th Dept, 3/21/21 (Onondaga)	dismissed 6/4/21 (DiFiore, Ch. J.)
People v McGriff	4th Dept: 193 AD3d 1348 (Onondaga)	denied 6/10/21 (Rivera, J.)
People v McKiernan	App Term, 2d Dept, 9th & 10th Jud Dists: 70 Misc 3d 79 (Westchester)	denied reconsideration 6/4/21 (Rivera, J.)
People v Merk	3d Dept: 194 AD3d 1123 (Albany)	denied 6/28/21 (Garcia, J.)
People v Mixon	4th Dept: 191 AD3d 1236 (Erie)	denied 6/10/21 (Wilson, J.)
People v Mohabir	2d Dept: 192 AD3d 1047 (Queens)	denied 6/29/21 (DiFiore, Ch. J.)

* Denied, with leave to renew within 30 days after the Appellate Division, Second Department, renders a decision on appellant's motion for reargument of an order of that Court dated February 10, 2021 (191 AD3d 802 [2d Dept 2021]).

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People v Moody	2d Dept: 189 AD3d 1267 (Dutchess)	denied 6/30/21 (Wilson, J.)
People v Moreno	2d Dept: 193 AD3d 881 (Richmond)	denied 6/21/21 (Rivera, J.)
People v Muhammad	1st Dept: 193 AD3d 466 (Bronx)	denied 6/25/21 (Fahey, J.)
People v Muniz	3d Dept: 193 AD3d 1116 (Warren)	denied 6/2/21 (DiFiore, Ch. J.)
People v Myers (Jacob)	4th Dept: 194 AD3d 1426 (Monroe)	denied 6/30/21 (Wilson, J.)
People v Myers (Tyrell)	1st Dept: 194 AD3d 431 (NY)	denied 6/28/21 (Fahey, J.)
People v Nelson	2d Dept: 186 AD3d 1404 (Queens)	denied 6/10/21 (Wilson, J.)
People v Newton	4th Dept: 192 AD3d 1635 (Monroe)	denied 6/14/21 (Garcia, J.)
People v Norbekov	4th Dept: 192 AD3d 1679 (Erie)	denied 6/30/21 (Wilson, J.)
People v Nunez	App Term, 1st Dept: 71 Misc 3d 134(A) (NY)	denied 6/28/21 (Garcia, J.)
People v Osbourne	1st Dept: 191 AD3d 561 (NY)	denied 6/10/21 (Wilson, J.)
People v Ouikhlef	App Term, 1st Dept: 71 Misc 3d 129(A) (NY)	denied 6/4/21 (Wilson, J.)
People v Paul	4th Dept: 192 AD3d 1635 (Onondaga)	denied 6/17/21 (Garcia, J.)
People v Pietrocarlo	4th Dept: 191 AD3d 1263 (Erie)	granted 6/11/21 (Wilson, J.)
People v Pilmar	1st Dept: 193 AD3d 467 (NY)	denied 6/25/21 (Fahey, J.)
People v Pinkard	4th Dept: 191 AD3d 1333 (Wayne)	denied reconsideration 6/30/21 (Wilson, J.)
People v Pittman (Greggory)	2d Dept: 176 AD3d 1236 (Dutchess)	denied 6/3/21 (DiFiore, Ch. J.)
People v Pittman (Gregory)	2d Dept: 176 AD3d 1236 (Dutchess)	denied 6/3/21 (DiFiore, Ch. J.)
People v Pope	1st Dept: 194 AD3d 449 (NY)	denied 6/23/21 (Garcia, J.)
People v Powell	4th Dept: 194 AD3d 1423 (Monroe)	denied 6/30/21 (Wilson, J.)
People v Rangel	App Term, 1st Dept: 70 Misc 3d 144(A) (NY)	denied 6/25/21 (Fahey, J.)
People v Razzoli (Kevin)	App Term, 1st Dept: 71 Misc 3d 133(A), 2021 NY Slip Op 50332(U) (Bronx)	denied 6/4/21 (Rivera, J.)
People v Razzoli (Kevin)	App Term, 1st Dept: 71 Misc 3d 133(A), 2021 NY Slip Op 50333(U) (Bronx)	denied 6/4/21 (Rivera, J.)
People v Richardson	1st Dept: 193 AD3d 430 (NY)	denied 6/3/21 (DiFiore, Ch. J.)

People v Rivera (Anner)	App Div, 2d Dept: 2020 NY Slip Op 73715(U) (Richmond)	dismissed 6/14/21 (Garcia, J.)
People v Rivera (Tony)	1st Dept: 193 AD3d 557 (NY)	denied 6/10/21 (Wilson, J.)
People v Robinson	4th Dept: 193 AD3d 1393 (Monroe)	denied 6/30/21 (Wilson, J.)
People v Robles	1st Dept: 193 AD3d 659 (Bronx)	denied 6/17/21 (Garcia, J.)
People v Rodney	1st Dept: 193 AD3d 657 (NY)	denied 6/30/21 (DiFiore, Ch. J.)
People v Rogers	2d Dept: 194 AD3d 853 (Kings)	denied 6/21/21 (Rivera, J.)
People v Saladeen	1st Dept: 194 AD3d 426 (NY)	denied 6/28/21 (Fahey, J.)
People v Salvatore	1st Dept: 193 AD3d 598 (NY)	denied 6/17/21 (Garcia, J.)
People v Saunders	App Div, 2d Dept: 2021 NY Slip Op 63873(U) (Orange)	dismissed 6/25/21 (DiFiore, Ch. J.)
People v Scharkey	App Div, 1st Dept: 2021 NY Slip Op 65395(U) (NY)	denied 6/29/21 (DiFiore, Ch. J.)
People v Schinnerer	3d Dept: 192 AD3d 1395 (Schoharie)	denied 6/21/21 (DiFiore, Ch. J.)
People v Shakespeare	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 71 Misc 3d 135(A) (Queens)	denied 6/29/21 (DiFiore, Ch. J.)
People v Shaquan G.	2d Dept: 194 AD3d 744 (Kings)	denied 6/29/21 (DiFiore, Ch. J.)
People v Simons	2d Dept: 193 AD3d 888 (Suffolk)	denied 6/4/21 (Wilson, J.)
People v Soley	App Div, 3d Dept: 2020 NY Slip Op 75576(U) (Greene)	denied reconsideration 6/30/21 (Wilson, J.)
People v Smallwood	1st Dept: 193 AD3d 659 (Bronx)	denied 6/24/21 (DiFiore, Ch. J.)
People v Smith (Carl)	2d Dept: 189 AD3d 1618 (Kings)	denied 6/1/21 (Garcia, J.)
People v Smith (Christopher)	2d Dept: 193 AD3d 986 (Orange)	denied 6/25/21 (Fahey, J.)
People v Smith (Deyontay)	4th Dept: 192 AD3d 1648 (Onondaga)	denied 6/25/21 (Fahey, J.)
People v Smith (Karim)	3d Dept: 193 AD3d 1260 (Schenectady)	denied 6/16/21 (Rivera, J.)
People v Steward	2d Dept: 193 AD3d 888 (Kings)	denied 6/11/21 (Wilson, J.)
People v Sumpter	3d Dept: 191 AD3d 1160 (Fulton)	denied 6/4/21 (DiFiore, Ch. J.)
People v Taylor (Cynthia)	4th Dept: 192 AD3d 1683 (Yates)	denied 6/25/21 (Fahey, J.) (Appeal No. 1)
People v Taylor (Cynthia)	4th Dept: 192 AD3d 1684 (Yates)	denied 6/25/21 (Fahey, J.) (Appeal No. 2)

People v Thomas	2d Dept: 193 AD3d 889 (Queens)	denied 6/29/21 (DiFiore, Ch. J.)
People v Tinsley	App Div, 2d Dept: 2021 NY Slip Op 62753(U) (Westchester)	dismissed 6/10/21 (Wilson, J.)
People v Torres	2d Dept: 192 AD3d 831 (Nassau)	denied 6/2/21 (Stein, J.)
People v Vaughan	2d Dept: 193 AD3d 889 (Queens)	denied 6/24/21 (DiFiore, Ch. J.)
People v Velasquez	2d Dept: 193 AD3d 1084 (Queens)	denied 6/8/21 (Rivera, J.)
People v Wade	App Div, 1st Dept: 2020 NY Slip Op 74952(U) (NY)	denied 6/15/21 (Rivera, J.)
People v Watts	2d Dept: 192 AD3d 1048 (Nassau)	denied 6/30/21 (Wilson, J.)
People v West	2d Dept: 188 AD3d 1277 (Westchester)	denied reconsideration 6/4/21 (Wilson, J.)
People v Wiggins	2d Dept: 192 AD3d 708 (Orange)	denied 6/1/21 (Stein, J.)
People v Wilkinson	2d Dept: 192 AD3d 708 (Kings)	denied 6/14/21 (Garcia, J.)
People v Williams	2d Dept: 192 AD3d 1049 (Nassau)	denied 6/24/21 (DiFiore, Ch. J.)
People v Wilson	2d Dept: 193 AD3d 891 (Queens)	denied 6/28/21 (Garcia, J.)
People v Worley	2d Dept: 194 AD3d 759 (Kings)	denied 6/29/21 (Garcia, J.)
People v Wright	4th Dept: 193 AD3d 1348 (Onondaga)	denied 6/10/21 (Rivera, J.)
People v Zelaya	App Term, 2d Dept, 9th & 10th Jud Dists: 69 Misc 3d 135(A) (Suffolk)	denied 6/2/21 (DiFiore, Ch. J.)

BROOKLYN CENTER FOR PSYCHOTHERAPY, INC., Appellant, v
PHILADELPHIA INDEMNITY INSURANCE COMPANY, Respon-
dent.

Decided February 25, 2021

See 955 F3d 305.

Pursuant to the February 11, 2021 order of the United States Court of Appeals for the Second Circuit withdrawing the appeal to that court upon stipulation of the parties, certified question marked withdrawn [*see* 35 NY3d 962 (2020)].

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(July 1, 2021 through July 31, 2021)

People v Ablakatov	1st Dept: 194 AD3d 617 (NY)	denied 7/30/21 (Rivera, J.)
People v Ahmeti	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 71 Misc 3d 139(A) (Queens)	withdrawn 7/19/21 (Fahey, J.)
People v Allbrooks	1st Dept: 195 AD3d 477 (NY)	denied 7/20/21 (Rivera, J.)
People v Alligood	4th Dept: 192 AD3d 1508 (Monroe)	denied 7/16/21 (Wilson, J.)
People v Alvarez (Anthony)	App Div, 1st Dept: 2020 NY Slip Op 64101(U) (NY)	denied reconsideration 7/9/21 (Fahey, J.)
People v Alvarez (Bianca)	1st Dept: 194 AD3d 618 (Bronx)	denied 7/20/21 (Rivera, J.)
People v Andrad-Gomez	2d Dept: 194 AD3d 731 (Suffolk)	denied 7/8/21 (DiFiore, Ch. J.)
People v Angel	1st Dept: 194 AD3d 497 (Bronx)	denied 7/30/21 (Rivera, J.)
People v Argueta	2d Dept: 194 AD3d 857 (Nassau)	denied 7/9/21 (Garcia, J.)
People v Askew	County Ct, 4/8/21 (Sullivan)	denied 7/30/21 (Rivera, J.)
People v Ayala	3d Dept: 194 AD3d 1255 (Albany)	denied 7/13/21 (Fahey, J.)
People v Baines	1st Dept: 178 AD3d 476 (NY)	granted 7/13/21 (Wilson, J.)
People v Ballester-Perez	3d Dept: 195 AD3d 1234 (Ulster)	denied 7/21/21 (Fahey, J.)
People v Barnard	County Ct, 4/15/21 (Monroe)	denied 7/9/21 (Fahey, J.)
People v Bell	App Div, 4th Dept, 5/18/21 (Monroe)	dismissed 7/9/21 (Wilson, J.)
People v Blakey	2d Dept: 193 AD3d 1072 (Suffolk)	denied 7/1/21 (Garcia, J.)
People v Boje	4th Dept: 194 AD3d 1367 (Ontario)	denied 7/6/21 (Fahey, J.)
People v Bonilla	2d Dept: 194 AD3d 830 (Westchester)	denied 7/20/21 (Rivera, J.)
People v Brady	4th Dept: 195 AD3d 1545 (Monroe)	denied 7/20/21 (Rivera, J.)
People v Breedan	2d Dept: 193 AD3d 756 (Kings)	denied 7/20/21 (Rivera, J.)
People v Brewster	3d Dept: 194 AD3d 1266 (Albany)	denied 7/19/21 (Fahey, J.)
People v Brown	4th Dept: 194 AD3d 1398 (Herkimer)	denied 7/28/21 (DiFiore, Ch. J.)
People v Buchanan	1st Dept: 194 AD3d 655 (NY)	denied 7/20/21 (Rivera, J.)

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People v Carey	1st Dept: 194 AD3d 553 (NY)	denied 7/6/21 (Fahey, J.)
People v Caridad	1st Dept: 195 AD3d 476 (NY)	denied 7/28/21 (Garcia, J.)
People v Carrion	1st Dept: 194 AD3d 431 (Bronx)	denied 7/15/21 (Garcia, J.)
People v Ceballos	1st Dept: 189 AD3d 414 (NY)	denied 7/28/21 (Garcia, J.)
People v Cerda	2d Dept: 192 AD3d 1041 (Nassau)	granted 7/13/21 (Rivera, J.)
People v Chema	4th Dept: 195 AD3d 1448 (Monroe)	denied 7/29/21 (DiFiore, Ch. J.)
People v Childers (Charlene)	4th Dept: 193 AD3d 1358 (Wayne)	denied 7/8/21 (DiFiore, Ch. J.) (Appeal No. 1)
People v Childers (Charlene)	4th Dept: 193 AD3d 1358 (Wayne)	denied 7/8/21 (DiFiore, Ch. J.) (Appeal No. 2)
People v Collins	4th Dept: 194 AD3d 1421 (Monroe)	denied 7/9/21 (Fahey, J.)
People v Commissiong	2d Dept: 194 AD3d 952 (Richmond)	denied 7/13/21 (Fahey, J.)
People v Cook	2d Dept: 193 AD3d 966 (Kings)	denied 7/20/21 (Rivera, J.)
People v Coplin	2d Dept: 194 AD3d 739 (Orange)	denied 7/30/21 (DiFiore, Ch. J.)
People v Crespo	1st Dept: 194 AD3d 651 (Bronx)	denied 7/8/21 (Fahey, J.)
People v D'Amico	2d Dept: 194 AD3d 742 (Dutchess)	denied 7/6/21 (Fahey, J.)
People v Davon S.	4th Dept: 191 AD3d 1408 (Genesee)	denied reconsideration 7/21/21 (Garcia, J.) (Appeal No. 1)
People v Davon S.	4th Dept: 191 AD3d 1409 (Genesee)	denied reconsideration 7/21/21 (Garcia, J.) (Appeal No. 2)
People v Delgado	1st Dept: 194 AD3d 554 (Bronx)	denied 7/8/21 (DiFiore, Ch. J.)
People v Downs	3d Dept: 194 AD3d 1118 (Albany)	denied 7/1/21 (Garcia, J.)
People v Edwards	2d Dept: 194 AD3d 742 (Westchester)	denied 7/6/21 (Fahey, J.)
People v Folborg	2d Dept: 194 AD3d 1071 (Kings)	denied 7/20/21 (Rivera, J.)
People v Fontanez-Baez	4th Dept: 195 AD3d 1448 (Monroe)	denied 7/29/21 (DiFiore, Ch. J.)
People v Foxworth	2d Dept: 192 AD3d 1139 (Kings)	denied 7/1/21 (Garcia, J.)

People v Gamble	2d Dept: 194 AD3d 838 (Orange)	denied 7/1/21 (Garcia, J.)
People v Gaylord	3d Dept: 194 AD3d 1189 (Broome)	denied 7/1/21 (Garcia, J.)
People v Gonzalez (Gerard)	1st Dept: 194 AD3d 621 (NY)	denied 7/20/21 (Rivera, J.)
People v Gonzalez (Olban)	2d Dept: 195 AD3d 641 (Nassau)	denied 7/28/21 (Garcia, J.)
People v Grant	2d Dept: 189 AD3d 1458 (Queens)	denied reconsideration 7/19/21 (DiFiore, Ch. J.)
People v Grefer	County Ct, 4/15/21 (Monroe)	denied 7/15/21 (DiFiore, Ch. J.)
People v Guichard	2d Dept: 194 AD3d 745 (Suffolk)	denied 7/6/21 (Fahey, J.)
People v Hall	4th Dept: 194 AD3d 1372 (Lewis)	denied 7/22/21 (Garcia, J.)
People v Hernandez	4th Dept: 193 AD3d 1413 (Erie)	denied 7/22/21 (Garcia, J.)
People v Hill (Jaquan)	4th Dept: 193 AD3d 1366 (Orleans)	denied 7/9/21 (Garcia, J.)
People v Hill (Kevion)	1st Dept: 194 AD3d 528 (NY)	denied 7/30/21 (DiFiore, Ch. J.)
People v Hymes	2d Dept: 193 AD3d 975 (Queens)	denied 7/20/21 (Rivera, J.)
People v Innocent	2d Dept: 193 AD3d 761 (Suffolk)	denied 7/9/21 (Garcia, J.)
People v Jackson	1st Dept: 194 AD3d 654 (NY)	denied 7/20/21 (Rivera, J.)
People v Jian Moy	2d Dept: 194 AD3d 756 (Kings)	denied 7/20/21 (Rivera, J.)
People v Johnson (Kevin)	4th Dept: 194 AD3d 1410 (Onondaga)	denied 7/22/21 (Garcia, J.)
People v Johnson (Pierre)	2d Dept: 194 AD3d 1072 (Kings)	denied 7/19/21 (Fahey, J.)
People v Johnston	4th Dept: 192 AD3d 1516 (Monroe)	denied 7/16/21 (Wilson, J.)
People v Jones (James)	4th Dept: 193 AD3d 1410 (Monroe)	denied 7/30/21 (Rivera, J.)
People v Jones (Jason)	2d Dept: 195 AD3d 749 (Kings)	denied 7/28/21 (Garcia, J.)
People v Jones (Jimmy)	4th Dept: 193 AD3d 1410 (Monroe)	denied 7/30/21 (Rivera, J.)
People v Jota	4th Dept: 195 AD3d 1448 (Monroe)	denied 7/29/21 (DiFiore, Ch. J.)
People v King	2d Dept: 194 AD3d 842 (Queens)	denied 7/22/21 (Garcia, J.)
People v Legrand (Differson)	2d Dept: 194 AD3d 1073 (Queens)	denied 7/19/21 (DiFiore, Ch. J.)

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People v Legrand (Differson)	2d Dept: 194 AD3d 1073 (Queens)	withdrawn 7/19/21 (DiFiore, Ch. J.)
People v Leonard	App Div, 4th Dept, 5/17/21 (Monroe)	dismissed 7/20/21 (Rivera, J.)
People v Lewis (Regina)	2d Dept: 190 AD3d 983 (Orange)	denied reconsideration 7/30/21 (Rivera, J.)
People v Lewis (William)	4th Dept: 193 AD3d 1359 (Ontario)	denied 7/30/21 (Rivera, J.)
People v Linn	4th Dept: 194 AD3d 1420 (Ontario)	denied 7/28/21 (Garcia, J.)
People v Lora	4th Dept: 192 AD3d 1488 (Monroe)	denied 7/9/21 (Garcia, J.)
People v Maldonado	2d Dept: 194 AD3d 1076 (Suffolk)	denied 7/8/21 (Fahey, J.)
People v Maslowski	2d Dept: 187 AD3d 1211 (Queens)	denied 7/22/21 (DiFiore, Ch. J.)
People v Massey	4th Dept: 191 AD3d 1488 (Erie)	denied reconsideration 7/22/21 (Garcia, J.)
People v McGee	4th Dept: 194 AD3d 1454 (Onondaga)	denied 7/22/21 (DiFiore, Ch. J.)
People v McGhee	1st Dept: 194 AD3d 498 (NY)	denied 7/8/21 (Fahey, J.)
People v McLaughlin	4th Dept: 193 AD3d 1338 (Monroe)	denied 7/8/21 (Fahey, J.)
People v Meridy	4th Dept: 196 AD3d 1 (Onondaga)	denied 7/7/21 (Rivera, J.)
People v Merritt	1st Dept: 193 AD3d 661 (NY)	denied 7/13/21 (Wilson, J.)
People v Mills	App Div, 4th Dept: 2021 NY Slip Op 66322(U) (Genesee)	dismissed 7/22/21 (Garcia, J.)
People v Munnerlyn	2d Dept: 193 AD3d 981 (Kings)	denied 7/20/21 (Rivera, J.)
People v Natal	2d Dept: 194 AD3d 756 (Richmond)	denied 7/22/21 (DiFiore, Ch. J.)
People v Neofytides	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 71 Misc 3d 130(A) (Queens)	denied 7/15/21 (Garcia, J.)
People v Nichols	3d Dept: 194 AD3d 1114 (Saratoga)	denied 7/20/21 (Rivera, J.)
People v Oliver	2d Dept: 193 AD3d 1081 (Kings)	denied 7/15/21 (Garcia, J.)
People v Oliveros	App Term, 1st Dept: 69 Misc 3d 130(A) (NY)	denied 7/20/21 (Fahey, J.)
People v Ortiz	1st Dept: 195 AD3d 426 (Bronx)	denied 7/22/21 (DiFiore, Ch. J.)
People v Pace	3d Dept: 192 AD3d 1274 (Ulster)	denied 7/8/21 (Fahey, J.)

People v Perez	1st Dept: 189 AD3d 506 (Bronx)	denied 7/9/21 (Wilson, J.)
People v Pierre	1st Dept: 194 AD3d 580 (Bronx)	denied 7/15/21 (DiFiore, Ch. J.)
People v Price	4th Dept: 194 AD3d 1382 (Seneca)	denied 7/22/21 (Garcia, J.)
People v Richard	1st Dept: 193 AD3d 621 (NY)	denied 7/21/21 (Fahey, J.)
People v Richardson	1st Dept: 194 AD3d 527 (NY)	denied 7/20/21 (Rivera, J.)
People v Rivera	2d Dept: 193 AD3d 766 (Richmond)	denied 7/13/21 (Wilson, J.)
People v Rodriguez	2d Dept: 194 AD3d 853 (Nassau)	denied 7/30/21 (DiFiore, Ch. J.)
People v Rosario	1st Dept: 193 AD3d 659 (NY)	denied 7/9/21 (Garcia, J.)
People v Ruiz	1st Dept: 194 AD3d 496 (Bronx)	denied 7/6/21 (Fahey, J.)
People v Santiago	2d Dept: 194 AD3d 853 (Westchester)	denied 7/20/21 (Rivera, J.)
People v Scott (Andre)	4th Dept: 195 AD3d 1503 (Genesee)	denied 7/30/21 (Rivera, J.)
People v Scott (Michael)	4th Dept: 193 AD3d 1362 (Monroe)	denied 7/8/21 (Fahey, J.)
People v Shannon	App Div, 4th Dept, 5/17/21 (Monroe)	dismissed 7/20/21 (Rivera, J.)
People v Shaw	4th Dept: 195 AD3d 1425 (Cattaraugus)	denied 7/30/21 (Rivera, J.)
People v Sime-Torres	1st Dept: 193 AD3d 600 (Bronx)	denied 7/6/21 (Fahey, J.)
People v Smith	4th Dept: 194 AD3d 1407 (Monroe)	denied 7/1/21 (Garcia, J.)
People v Snow	4th Dept: 195 AD3d 1441 (Onondaga)	denied 7/30/21 (Rivera, J.)
People v Spencer (Saleem)	4th Dept: 170 AD3d 1614 (Cayuga)	denied 7/22/21 (Garcia, J.) (Appeal No. 1)
People v Spencer (Saleem)	4th Dept: 170 AD3d 1616 (Cayuga)	denied 7/22/21 (Garcia, J.) (Appeal No. 2)
People v Stanislaus	2d Dept: 193 AD3d 988 (Kings)	denied 7/8/21 (DiFiore, Ch. J.)
People v Streeter	4th Dept: 194 AD3d 1407 (Niagara)	denied 7/20/21 (Rivera, J.)
People v Suchite	2d Dept: 191 AD3d 906 (Rockland)	denied 7/6/21 (Fahey, J.)
People v Sutar	County Ct, 5/12/21 (Livingston)	denied 7/20/21 (Rivera, J.)
People v Talbot	2d Dept: 194 AD3d 757 (Kings)	denied 7/1/21 (Garcia, J.)

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People v Taylor	3d Dept: 194 AD3d 1264 (Schenectady)	denied 7/20/21 (Rivera, J.)
People v Torres (Jose)	4th Dept: 193 AD3d 1360 (Ontario)	denied 7/22/21 (Fahey, J.) (Appeal No. 1)
People v Torres (Jose)	4th Dept: 193 AD3d 1360 (Ontario)	denied 7/22/21 (Fahey, J.) (Appeal No. 2)
People v Tucker	2d Dept: 195 AD3d 646 (Kings)	denied 7/22/21 (Garcia, J.)
People v Vega	1st Dept: 194 AD3d 617 (NY)	denied 7/22/21 (Garcia, J.)
People v Villalta	2d Dept: 193 AD3d 890 (Kings)	denied 7/2/21 (Wilson, J.)
People v Walker	2d Dept: 189 AD3d 1619 (Kings)	dismissed 7/8/21 (Fahey, J.)
People v West (Allisa)	3d Dept: 189 AD3d 1981 (Hamilton)	denied 7/9/21 (Garcia, J.)
People v West (Quareese)	3d Dept: 189 AD3d 1822 (St. Lawrence)	dismissed 7/1/21 (Wilson, J.)
People v Williams	County Ct, 4/30/21 (Erie)	denied 7/28/21 (DiFiore, Ch. J.)
People v Woods	App Div, 3d Dept: 2021 NY Slip Op 62353(U) (Albany)	denied reconsideration 7/30/21 (Rivera, J.)
People v Yiqiao Wang	1st Dept: 191 AD3d 485 (NY)	denied reconsideration 7/6/21 (Fahey, J.)
People v Young	4th Dept: 195 AD3d 1455 (Monroe)	denied 7/20/21 (Rivera, J.)

**In the Matter of ADONNIS M. ADMINISTRATION FOR CHILDREN'S
SERVICES, Respondent; KENYETTA M., Appellant. RISING
GROUND, Nonparty Respondent.**

Submitted August 9, 2021; decided September 2, 2021

Reported below, 194 AD3d 1048.

Motion for poor person relief granted.

ANNA AYBAR et al., Appellants, v JOSE A. AYBAR, JR., et al., Defendants, and FORD MOTOR COMPANY et al., Respondents.
U.S. TIRES AND WHEELS OF QUEENS, LLC, Nonparty Respondent.

Submitted August 2, 2021; decided September 2, 2021

Reported below, 169 AD3d 137.

Motion by American Association for Justice for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

ANNA AYBAR et al., Appellants, v JOSE A. AYBAR, JR., et al., Defendants, and FORD MOTOR COMPANY et al., Respondents.
U.S. TIRES AND WHEELS OF QUEENS, LLC, Nonparty Respondent.

Submitted August 2, 2021; decided September 2, 2021

Reported below, 169 AD3d 137.

Motion by New York City Bar Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

ANNA AYBAR et al., Appellants, v JOSE A. AYBAR, JR., et al., Defendants, and FORD MOTOR COMPANY et al., Respondents.
U.S. TIRES AND WHEELS OF QUEENS, LLC, Nonparty Respondent.

Submitted August 2, 2021; decided September 2, 2021

Reported below, 169 AD3d 137.

Motion by Chamber of Commerce of the United States of America et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

In the Matter of ASHLEIGH COOK, Respondent, v BENJAMIN SIERRA, JR., Respondent. GEORGE E. REED, JR., ESQ., Attorney for the Child, Appellant. (Proceeding No. 1.)

In the Matter of BENJAMIN SIERRA, JR., Respondent, v ASHLEIGH COOK, Respondent. GEORGE E. REED, JR., ESQ., Attorney for the Child, Appellant. (Proceeding No. 2.)

Submitted July 6, 2021; decided September 2, 2021

Reported below, 190 AD3d 732.

Motion for leave to appeal dismissed upon the ground that appellant, having taken no appeal to the Appellate Division, may not appeal to this Court from the Appellate Division order of affirmance.

In the Matter of the Foreclosure of Tax Liens by COUNTY OF BROOME. COUNTY OF BROOME, Respondent; JOHN CADORE et al., Appellants.

Submitted April 12, 2021; decided September 2, 2021

Reported below, 192 AD3d 1226; 2020 NY Slip Op 67843(U).

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for a stay dismissed as academic.

In the Matter of DAGAN B. ONTARIO COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; CALLA B., Appellant. (Appeal No. 3.)

Submitted April 19, 2021; decided September 2, 2021

Reported below, 192 AD3d 1458.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

In the Matter of DCH AUTO et al., Appellants, v TOWN OF MAMARONECK et al., Respondents.

Submitted August 30, 2021; decided September 2, 2021

Reported below, 178 AD3d 823.

Motion by CVS Albany LLC, et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed and the brief submitted in digital format within seven days.

FAST TRAK INVESTMENT COMPANY, LLC, a Delaware Limited Liability Company, Respondent, v RICHARD PHILIP SAX, Individually and as Principal for the Law Offices of Richard Sax, et al., Appellants.

Decided September 2, 2021

See 962 F3d 455.

Pursuant to the July 23, 2021 order of the United States Court of Appeals for the Ninth Circuit granting the joint motion to withdraw certification and dismiss the appeal to that Court, certified questions marked withdrawn.

Chief Judge DiFiore and Judges Rivera, Fahey, Garcia, Wilson, Singas and Cannataro concur.

KEVIN GRADY, Appellant, v CHENANGO VALLEY CENTRAL SCHOOL DISTRICT et al., Respondents.

Submitted July 6, 2021; decided September 2, 2021

Reported below, 190 AD3d 1218.

Motion by New York State Trial Lawyers Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. One copy of the brief must be filed and the brief submitted in digital format within seven days.

J.P. MORGAN SECURITIES, INC., et al., Appellants, v VIGILANT INSURANCE COMPANY et al., Respondents.

Submitted August 30, 2021; decided September 2, 2021

Reported below, 166 AD3d 1.

Motion by James Corcoran, et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed and the brief submitted in digital format within seven days.

J.P. MORGAN SECURITIES, INC., et al., Appellants, v VIGILANT INSURANCE COMPANY et al., Respondents.

Submitted August 30, 2021; decided September 2, 2021

Reported below, 166 AD3d 1.

Motion by Securities Industry and Financial Markets Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

In the Matter of DAVID KALANTAROV, Respondent, v MARINA PRIYEVA, Respondent. CAROL LIPTON, ESQ., Attorney for the Children, Appellant.

Submitted August 16, 2021; decided September 2, 2021

Reported below, 177 AD3d 881.

Motion for leave to appeal dismissed upon the ground that appellant, having taken no appeal to the Appellate Division, may not appeal to this Court from the Appellate Division order of affirmance. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of LEON R. KOZIOL, a Suspended Attorney, Appellant. COMMITTEE ON PROFESSIONAL STANDARDS, Now Known as ATTORNEY GRIEVANCE COMMITTEE FOR THE THIRD JUDICIAL DEPARTMENT, Respondent.

Decided September 2, 2021

Reported below, 186 AD3d 1825.

Appeal, insofar as taken from that portion of the Appellate Division order that denied reinstatement, dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved; appeal otherwise dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the remaining portion of the order does not finally determine the proceeding within the meaning of the Constitution.

Judge FAHEY took no part.

In the Matter of MENTAL HYGIENE LEGAL SERVICE, on Behalf of OLIVIA CC., an Infant, Appellant, v KERRY DELANEY, as Acting Commissioner of the Office for People with Developmental Disabilities, et al., Respondents, et al., Respondent.

Submitted June 7, 2021; decided September 2, 2021

Reported below, 176 AD3d 24.

Motion by Autistic Self Advocacy Network et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

FRANCIS NEMETH, Individually and as Personal Representative of the ESTATE OF FLORENCE NEMETH, Deceased, Respondent, v BRENNTAG NORTH AMERICA et al., Defendants, and WHITTAKER, CLARK & DANIELS, INC., Appellant.

Submitted June 7, 2021; decided September 2, 2021

Reported below, 183 AD3d 211.

Motion by Richard L. Kradin et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Judge WILSON took no part.

In the Matter of NONHUMAN RIGHTS PROJECT, INC., on Behalf of HAPPY, Appellant, v JAMES J. BREHENY et al., Respondents.

Submitted August 9, 2021; decided September 2, 2021

Reported below, 189 AD3d 583.

Motion by Protect the Harvest et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed and the brief submitted in digital format within seven days.

In the Matter of NONHUMAN RIGHTS PROJECT, INC., on Behalf of
HAPPY, Appellant, v JAMES J. BREHENY et al., Respondents.

Submitted August 30, 2021; decided September 2, 2021

Reported below, 189 AD3d 583.

Motion by Martha C. Nussbaum for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

NYCTL 1998-2 TRUST, Plaintiff, v DR 226 HOLDINGS, LLC, et al., Defendants, and WARREN JOHNSON, Respondent. ADAM PLOTCH, Intervenor; ADELPHIF, LLC, Nonparty Appellant.

Decided September 2, 2021

Reported below, 192 AD3d 900.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

HECTOR ORTIZ, in His Capacity as Temporary Administrator of the ESTATE OF VICKY ORTIZ, Individually and on Behalf of All Others Similarly Situated, Appellant, v CIOX HEALTH LLC, Successor in Interest to IOD INC., et al., Respondents.

Submitted March 22, 2021; decided September 2, 2021

See 961 F3d 155.

Motion by Greater New York Hospital Association et al. for leave to file a brief amici curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

Chief Judge DiFIORE and Judge GARCIA took no part.

HECTOR ORTIZ, in His Capacity as Temporary Administrator of the ESTATE OF VICKY ORTIZ, Individually and on Behalf of All Others Similarly Situated, Appellant, v CIOX HEALTH LLC, Successor in Interest to IOD INC., et al., Respondents.

Submitted March 22, 2021; decided September 2, 2021

See 961 F3d 155.

Motion by Association of Health Information Outsourcing Services for leave to file a brief amicus curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

Chief Judge DiFIORE and Judge GARCIA took no part.

HECTOR ORTIZ, in His Capacity as Temporary Administrator of the ESTATE OF VICKY ORTIZ, Individually and on Behalf of All Others Similarly Situated, Appellant, v CIOX HEALTH LLC, Successor in Interest to IOD INC., et al., Respondents.

Submitted March 22, 2021; decided September 2, 2021

See 961 F3d 155.

Motion by Chamber of Commerce of the United States of America for leave to appear amicus curiae on consideration of the certified question herein granted only to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

Chief Judge DiFIORE and Judge GARCIA took no part.

DAVID G. PELTAN, Respondent, v KAREN M. CISLER, Appellant.

Decided September 2, 2021

Appeal transferred without costs, by the Court of Appeals sua sponte, to the Appellate Division, Fourth Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DON-
NELL BAINES, Appellant.

Submitted August 16, 2021; decided September 2, 2021

Reported below, 178 AD3d 476.

Motion for assignment of counsel granted and Caprice R. Jenerson, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DEVON
T. BUTLER, Appellant.

Submitted August 16, 2021; decided September 2, 2021

Reported below, 196 AD3d 28.

Motion for assignment of counsel granted and Clea Weiss, Esq., c/o Law Office of Clea Weiss, PO Box 39, Ithaca, NY 14851 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARTIN
CARILLO, Appellant.

Submitted July 19, 2021; decided September 2, 2021

Reported below, 186 AD3d 849.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTONE
HERROD, Also Known as TONE, Appellant.

Submitted August 30, 2021; decided September 2, 2021

Reported below, 188 AD3d 1692.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RON
HILL, Appellant.

Submitted June 28, 2021; decided September 2, 2021

Reported below, 69 Misc 3d 145(A), 2020 NY Slip Op 51394(U).

Motion for assignment of counsel granted and Janet E. Sabel, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LUIS
JIMENEZ, Appellant.

Submitted May 17, 2021; decided September 2, 2021

Reported below, 189 AD3d 882.

Motion to enlarge the record etc. granted only to the extent that respondent is directed to provide appellant's counsel with a copy of the grand jury minutes, as consented to by respondent.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL A. LOPEZ, Appellant.

Submitted July 12, 2021; decided September 2, 2021

Reported below, 189 AD3d 2152.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
GUILLERMO ORTIZ, Appellant.

Submitted June 7, 2021; decided September 2, 2021

Reported below, 189 AD3d 587.

Motion for assignment of counsel granted and Caprice R. Jenerson, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GRACE PIETROCARLO, Appellant.

Submitted July 19, 2021; decided September 2, 2021

Reported below, 191 AD3d 1263.

Motion for assignment of counsel granted and Michael J. Stachowski, Esq., c/o Michael J. Stachowski, P.C., 2025 Clinton Street, Buffalo, NY 14206 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BRADFORD L. SHANKS, Appellant.

Submitted August 2, 2021; decided September 2, 2021

Reported below, 174 AD3d 1142.

Motion by Center for Appellate Litigation et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v QUAREESE WEST, Appellant.

Submitted July 12, 2021; decided September 2, 2021

Reported below, 189 AD3d 1822.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. KENNETH GRATTON, Appellant, v JAMES DZURENDA, Respondent.

Decided September 2, 2021

Reported below, 2021 NY Slip Op 67305(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge SINGAS took no part.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. RONALD WILLIAMS, Appellant, v CYNTHIA BRANN et al., Respondents.

Decided September 2, 2021

Reported below, 186 AD3d 654.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of the STATE OF NEW YORK, Respondent, v FRANCISCO R., Appellant.

Submitted April 19, 2021; decided September 2, 2021

Reported below, 191 AD3d 989.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

In the Matter of TAHJ B.-L. ERIE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; TAHJMA L., Appellant.

Submitted June 21, 2021; decided September 2, 2021

Reported below, 192 AD3d 1502.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of TCR SPORTS BROADCASTING HOLDING, LLP, Appellant, v WN PARTNER, LLC, et al., Respondents, and BALTIMORE ORIOLES BASEBALL CLUB et al., Appellants.

Submitted December 14, 2020; decided September 2, 2021

Reported below, 187 AD3d 623.

Motion to dismiss appeal denied.

Chief Judge DiFIORE and Judge GARCIA took no part.

JENNIFER WHITE et al., Appellants, v ANDREW CUOMO, as Governor of the State of New York, et al., Respondents.

Submitted August 30, 2021; decided September 2, 2021

Reported below, 181 AD3d 76.

Motion by New Sports Economy Institute for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

Judge GARCIA took no part.

In the Matter of DIANE WORD, Appellant, v DIANNE T. RENWICK et al., Respondents.

Decided September 2, 2021

Reported below, 194 AD3d 727.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601).

Chief Judge DiFIORE took no part.

[173 NE3d 1146, 152 NYS3d 112]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN W. WALLS, Appellant.

Decided September 2, 2021

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered October 2, 2020. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (Francis A. Affronti, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second degree.

People v Walls, 187 AD3d 1527, reversed.

HEADNOTES

Crimes — Unlawful Search and Seizure — Reasonable Suspicion to Stop Vehicle — Possession of Long Gun by Vehicle Occupant

1. In the prosecution of defendant for criminal possession of a weapon found after a police officer stopped the vehicle in which defendant was a passenger based on a dispatcher's report that a 911 caller had asserted that one of the vehicle's occupants possessed a "long gun," defendant's claim that the

stop was invalid because possession of a “long gun” is lawful in New York was meritless (see Penal Law § 265.00 [22]).

Crimes — Unlawful Search and Seizure — Reasonable Suspicion to Stop Vehicle — Reliability of Tip

2. In the prosecution of defendant for criminal possession of a weapon found during the stop of a vehicle in which he was a passenger, suppression of the firearm was warranted where the People failed to establish the reliability of the 911 tip that served as the sole basis for the stop. The propriety of the denial of a suppression motion must be judged on the evidence before the suppression court. At the hearing, the People relied solely on the testimony of the police officer who effected the stop and who admitted that he did not observe any traffic infractions or conduct suggestive of criminality prior to the stop. Rather, he identified the vehicle using information given to him by a police dispatcher and justified the stop based only on the dispatcher’s report that a 911 caller had asserted that one of the vehicle’s occupants possessed a “long gun.” The People failed to introduce the 911 recording or any evidence indicating whether the 911 caller was an identified citizen informant or an anonymous tipster, and failed to offer any explanation of the basis of the caller’s knowledge.

APPEARANCES OF COUNSEL

Timothy P. Donaher, Public Defender, Rochester (A. Vincent Buzard of counsel), for appellant.

Sandra Doorley, District Attorney, Rochester (Daniel Gross of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, defendant’s motion to suppress granted, and the indictment dismissed.

Defendant John W. Walls challenges the denial of his motion to suppress a firearm found during the stop of a vehicle in which he was a passenger. He argues correctly that the People failed to present sufficient evidence at the motion hearing to justify the stop.

As relevant here, a vehicle stop in New York is legal “when there exists at least a reasonable suspicion that the driver or occupants of the vehicle have committed, are committing, or are about to commit a crime” (*People v Bushey*, 29 NY3d 158, 164 [2017] [citation omitted]; see also *Terry v Ohio*, 392 US 1, 21-22 [1968]; *People v De Bour*, 40 NY2d 210, 223 [1976]). Where a defendant moves to suppress evidence recovered during a search, the People bear “the burden of going forward to show the legality of the police conduct in the first instance” (*People v Berrios*, 28 NY2d 361, 367 [1971] [internal quotation marks, emphasis and citation omitted]).

[1, 2] At the hearing on defendant’s motion, the People relied solely on the testimony of the police officer who effected the stop. The officer identified the van using information given to him by the police dispatcher, i.e., the license plate and travel direction. The officer admitted that he did not observe any traffic infractions or any conduct suggestive of criminality prior to the stop. Rather, the officer’s only justification for the stop was the dispatcher’s report that a 911 caller had asserted that one of the vehicle’s occupants possessed a “long gun.” Initially, defendant claims that the stop was invalid because possession of a “long gun” is lawful in New York. We reject that claim as meritless (*see* Penal Law § 265.00 [22]). However, the People failed to introduce the 911 recording, failed to introduce any evidence indicating whether the 911 caller was an identified citizen informant or an anonymous tipster, and failed to offer any explanation of the basis of the caller’s knowledge. In sum, the People put forward no relevant information concerning the circumstances surrounding the call at the hearing. Contrary to the People’s suggestion that an appellate court can consider evidence subsequently admitted at trial to justify affirmance of an order denying suppression, “the propriety of the denial must be judged on the evidence before the suppression court” (*People v Gonzalez*, 55 NY2d 720, 721-722 [1981]). Therefore, on the record of the suppression hearing, “whether evaluated in light of the totality of the circumstances or under the *Aguilar-Spinelli* framework, the reliability of the tip was not established” (*People v Argyris*, 24 NY3d 1138, 1141 [2014]). Accordingly, the People’s evidence was insufficient to justify the stop and, absent evidence of the weapon, the indictment should be dismissed (*see People v Pines*, 99 NY2d 525, 527 [2002]).

Chief Judge DiFIORE and Judges RIVERA, FAHEY, GARCIA, WILSON, SINGAS and CANNATARO concur.

On review of submissions pursuant to Rules of the Court of Appeals (22 NYCRR) § 500.11, order reversed, defendant’s motion to suppress granted and indictment dismissed, in a memorandum.
